

RECORD OF A REGULAR MEETING OF THE BROOKLINE SCHOOL COMMITTEE ON **THURSDAY, MARCH 26, 2026** AT 6:00 PM, IN THE WALSH SCHOOL COMMITTEE MEETING ROOM, BROOKLINE TOWN HALL, 333 WASHINGTON STREET. NOTICE OF THIS MEETING WAS FILED WITH THE TOWN CLERK.

School Committee Members present: Valerie Frias (Chair), Sarah Moghtader (Vice Chair), Suzanne Federspiel, Jesse Hefter (remote), Andreas Liu, Mariah Nobrega, Danna Perry, Carolyn Thall, and Robert Weintraub.

Staff present: Bella Wong, Superintendent (remote); Dr. Robin Benoit, Deputy Superintendent for Teaching and Learning (remote); Dr. Karen Shmukler, Interim Deputy Superintendent for Student Services; and Dr. Susan Givens, Deputy Superintendent for Administration and Finance.

1. CONSENT AGENDA

ACTION 26-34

On a motion of Ms. Federspiel, seconded by Ms. Moghtader, the School Committee VOTED UNANIMOUSLY, by roll call, with 8 in favor (Ms. Frias, Ms. Moghtader, Ms. Federspiel, Dr. Hefter, Dr. Liu, Ms. Perry, Ms. Thall, and Dr. Weintraub; Ms. Nobrega was not present for the vote), 0 opposed, and 0 abstentions, to approve the following consent agenda item:

- a. Accounts Payable Report: March 20, 2026 (Attachment A)

2. STUDENT REPORT

Student Representative Ms. Jayashankar provided the March student report. She noted the observance of Category 1 holidays, including Eid al-Fitr on March 20 and Good Friday on April 3. She explained that in addition to school being closed on these days, there are restrictions for homework and tests. Ms. Jayashankar also reported on recent scheduling adjustments related to MCAS testing. Sophomores participated in ELA MCAS exams, while other grade levels had modified schedules: juniors attended seminars focused on college preparation topics such as essay writing and requesting teacher recommendations, while seniors benefited from later start times. She reported that Q3 interim progress reports had been released, providing students with feedback on their academic performance (typically without letter grades unless a student is failing).

In her update on student government activities, Ms. Jayashankar described revisions to the “async work bill,” originally passed last year. The amendment clarifies that when a teacher assigns asynchronous work during an absence, assignments may be submitted electronically (e.g., via Canvas) and do not need to wait until the teacher’s physical return. This change addresses issues arising from prior judicial interpretation, particularly in cases of extended teacher absences. Ms. Jayashankar reported that course selection for the 2026-2027 school year is currently underway, with submissions due next week. She noted that students are meeting with teachers for course recommendations but ultimately make their own selections. She closed her report noting that college admissions decisions are being released for seniors, with most notifications expected by early April.

3. SUPERINTENDENT'S REPORT

Superintendent Wong reported that the search for the Human Resources Director is in the finalist stage, and the search for a new principal at Runkle School is about to enter its finalist phase. She noted that there is no update at this time regarding the Deputy Superintendent for Student Services position, but committed to providing information as it becomes available. The Superintendent announced that Dr. Givens will retire as Deputy Superintendent for Administration and Finance at the end of the fiscal year. She expressed deep appreciation for Dr. Givens' leadership, particularly her financial expertise and long-range planning during a period of significant fiscal complexity for the district. The district looks forward to celebrating Dr. Givens' contributions later in the spring. Committee members echoed strong appreciation for Ms. Givens' impact and service.

Superintendent Wong also highlighted the District Review being conducted by the Massachusetts Department of Elementary and Secondary Education. The DESE team will be in the district next week. She explained that the review process has included several months of document collection and has now moved into the interview and site visit phase. The visit will include focus groups with various stakeholders and school visits across the district.

4. PUBLIC COMMENT

The following members of the community provided public comment: Rachel Goodman, Emily Gallagher, Beverly Gallagher, Ronni Chang, and Peter Clark. *Ms. Goodman* spoke as Board Chair of Steps to Success. She highlighted the organization's 25-year partnership with the Public Schools of Brookline and the Brookline Housing Authority to support over 350 students from low-income families from elementary school through college. She noted that a planned joint presentation with the district for this evening's meeting was postponed due to PSB staffing changes but emphasized the importance of the collaboration and expressed eagerness to return to present in the near future. She also invited the Committee to attend the Steps to Success 25th anniversary celebration on April 15. *Ms. Emily Gallagher* spoke in strong support of the Grade 4-8 music conservatory program, describing the positive impact the program has had on her child's educational experience over several years. She expressed concern that the program could be cut due to budget pressures, noting that families already make substantial sacrifices to live in Brookline and that losing the program would be deeply disappointing. She emphasized the program's rigor, the quality of its teachers, and its importance to student growth and family satisfaction with the district. *Ms. Beverly Gallagher*, retired PSB school nurse and grandparent, reinforced support for the conservatory program based on her decades of experience in the district. She described the program's broad benefits, including development of teamwork, discipline, confidence, and other life skills, particularly for students who may struggle in traditional academic settings. She also highlighted issues of access, noting that private lessons are not feasible for many families, and urged the Committee to preserve the program as a vital and equitable opportunity for students. BHS students *Ms. Chang* and *Mr. Clark* spoke about the importance of the conservatory program and the broader performing arts pathway. They emphasized that many students begin their musical journeys through the middle school conservatory program, which directly supports robust high school offerings such as orchestras, choirs, and ensembles. They shared personal experiences of growth, engagement, and community through music, and expressed concern that eliminating the program would undermine participation and opportunities at the high school level. They urged the School Committee to reject any cuts to the conservatory program.

5. PRESENTATIONS AND DISCUSSIONS OF CURRENT ISSUES
a. Discussion of a Draft Student Civil Rights Policy

Dr. Shmukler presented a draft Student Civil Rights Policy (Attachment B), including background on its development and the legal framework informing its content (Attachment C). She explained that this policy was originally developed to consolidate the district's existing anti-discrimination/harassment policy with a separate gender identity policy created in response to guidance from the Massachusetts Department of Elementary and Secondary Education. The draft was further shaped by state and federal civil rights laws, including Massachusetts General Law Chapter 76, Title VI and Title IX, as well as more recent guidance related to hate and bias incidents and protections such as the Crown Act of 2022. The goal of the draft policy is to provide a comprehensive, legally compliant framework that clearly defines student protections and district responsibilities. The Committee discussed both the substance and the structure of the draft policy.

This particular draft of the proposed policy was shared with the Policy Subcommittee in January 2025. At that time, some subcommittee members suggested edits (those edits are not part of this draft). There were questions about whether those edits constituted minor language changes or fundamentally altered the intent and purpose of the policy. At the February 24, 2026 Policy Subcommittee meeting, the subcommittee agreed that they were unlikely to reach consensus on a draft policy and they agreed that this original draft be advanced to the full School Committee for discussion and feedback.

Dr. Hefter directed members to his slides (Attachment D). He reported that last year, as a member of the Policy Subcommittee, he suggested edits to the draft policy. He asked that he be able to prepare a new draft for consideration by the School Committee at the next meeting. He described his approach to editing the policy as follows: maintain all required sections of the policy; refine language to reflect a non-ideological approach (for example, replace "microaggression" with "a brief, everyday comment or action that unintentionally communicates exclusion or stereotype"; replace "bias-based conduct" with "disrespectful behavior"). He described his approach as seeking to avoid terminology that may be associated with any particular ideological framework. Some members expressed concern that efforts to remove or revise terms such as "bias-based conduct" or "microaggressions" risked weakening the policy's alignment with legal standards and its ability to meaningfully address discrimination.

Members also provided feedback on the accessibility and usability of the draft policy. It was noted that the draft policy, as currently written, may be difficult for students or families to navigate, particularly if they refer to it in a moment of crisis. Suggestions included adding an opening statement identifying who the policy applies to (Does it apply only to students? What about staff?); add a clear articulation of student rights; a definition of terms should be added in an easily accessible location in the document; and separate the procedural details from the core policy. Members emphasized the importance of making the policy understandable and actionable for users, rather than overly technical or dense.

Some members noted uneven levels of specificity across protected categories and recommended expanding sections related to race, religion, and antisemitism to reflect current concerns and guidance, including recommendations from the state's Special Commission on Combating Antisemitism. Others suggested that the policy should be informed by available district data on bias incidents to ensure it addresses real trends and needs. There was additional

discussion about how this policy fits within the broader district framework, including its relationship to the student code of conduct. It was suggested that the protections in the draft policy are largely addressed in the student code of conduct. Staff clarified that while the code of conduct address general behavioral expectations, the civil rights policy is legally required and specifically governs discrimination and protections for students based on protected characteristics.

There was agreement on the importance of having a comprehensive and legally compliant policy. Overall, the feedback from members highlighted concerns about clarity, structure, and language, as well as differing perspectives on how best to balance accessibility with legal precision. The Committee did not take action on the draft. There was general agreement that the policy requires further refinement, including potential restructuring and additional legal review. The draft policy will be reviewed by the Policy Subcommittee, with counsel present, for no more than three (3) meetings, after which it will come back to the School Committee for a First Reading.

b. FY2027 Budget Updates

Superintendent Wong provided an update on the FY27 budget process, including the proposed override. She reported that, earlier this week, the Select Board voted to place a single override question before voters, totaling \$23.25 million phased in over three years, with \$17.94 million allocated to the schools. She expressed appreciation for the Select Board's action and noted that the outcome would ultimately be determined by the community in the May 5 Town election. She emphasized that the school department would be available to answer community questions in advance of the vote.

The Superintendent highlighted the extensive effort behind the budget, thanking more than 60 staff members involved in its development, including the senior leadership team and school principals. She noted that the budget development process required sustained weekly work over several months, incorporating stakeholder input, evaluating reductions, and assessing the impacts of various budget scenarios. She also acknowledged the School Committee's ongoing engagement through subcommittees, and the work of related advisory bodies. Given uncertainty around the override outcome, she explained that the district must prepare for potential reductions in force (known as RIFs). The contractual notification deadline for non-PTS (professional teacher status) staff is May 1, and the notification deadline for PTS staff is May 15. Both dates are very close to the May 5 election date. Therefore, the Superintendent said she is in discussions with the Brookline Educators Union about shifting those deadlines to avoid unnecessary distress for staff.

Superintendent Wong provided updates on follow-up actions tied to the Expenditures and Revenues and Expenditure Study (ERSC) final report. All staff interviews for the follow-up review by CliftonLarsonAllen have been completed, and a draft report is expected to be delivered to the Select Board next week. In addition, she reported that she and the Town Administrator are working on a memorandum of understanding (MOU) between the Town and Schools to advance the ERSC recommendations, with the goal of submitting a draft to the Select Board very soon. The MOU would operationalize previously discussed recommendations.

6. SCHOOL COMMITTEE ACTIONS

a. Acceptance of Gifts

- i. \$10,000 from an anonymous donor to support student financial assistance for Brookline High School international travel.**
- ii. \$1,022.76 from the Ruffin Ridley School PTO for the Discovering Justice fall stipend.**

Ms. Nobrega directed members to the *Request for Gift Acceptance* memo, dated March 26, 2026 (Attachment E). She reported that the Finance and Capital Projects Subcommittee, at their March 18, 2026 meeting, voted unanimously to recommend that the School Committee accept these gifts. The School Committee expressed their gratitude to the donors for these generous gifts.

ACTION 26-35

On a motion of Ms. Nobrega, and seconded by Ms. Perry, the School Committee VOTED UNANIMOUSLY, by roll call, with 9 in favor (Ms. Frias, Ms. Moghtader, Ms. Federspiel, Dr. Hefter, Dr. Liu, Ms. Nobrega, Ms. Perry, Ms. Thall, and Dr. Weintraub), 0 opposed, and 0 abstentions, to accept both gifts as described on the attached memo.

b. Review and approval of 1-year lease extensions for the Brookline Early Education Program at Temple Emeth, 194 Grove Street, Brookline, and Temple Ohabei Shalom, 1187 Beacon Street, Brookline.

Ms. Nobrega directed members to the memo titled *Contract Renewals for Temple Emeth and Temple Ohabei Shalom*, dated March 20, 2026 (Attachment F). She reported that the Finance and Capital Projects Subcommittee, at their March 18, 2026 meeting, voted unanimously to recommend that the School Committee approve both lease extensions. Dr. Givens clarified that while the annual increase for the leases is tied to the Consumer Price Index (CPI), at the time the lease extensions are approved the CPI is unknown. She therefore forecasts it for the maximum allowable CPI increase of 6%. Actual payments are typically lower than the maximum, which results in some accounts showing prior-year balances.

ACTION 26-36

On a motion of Ms. Nobrega, and seconded by Ms. Federspiel, the School Committee VOTED UNANIMOUSLY, by roll call, with 9 in favor (Ms. Frias, Ms. Moghtader, Ms. Federspiel, Dr. Hefter, Dr. Liu, Ms. Nobrega, Ms. Perry, Ms. Thall, and Dr. Weintraub), 0 opposed, and 0 abstentions, to approve the 1-year lease extensions as further described on Attachment F.

c. Review and approval of 1-year contract extensions with Eastern Bus and Local Motion for student transportation.

Ms. Nobrega directed members to the memo titled *Contract Renewals for Eastern Bus Co. and Local Motion, Inc.*, dated March 18, 2026 (Attachment G). She noted that the one-year contractual renewal options are very favorable compared to present market conditions.

ACTION 26-37

On a motion of Ms. Nobrega, and seconded by Dr. Hefter, the School Committee VOTED UNANIMOUSLY, by roll call, with 9 in favor (Ms. Frias, Ms. Moghtader, Ms. Federspiel, Dr. Hefter, Dr. Liu, Ms. Nobrega, Ms. Perry, Ms. Thall, and Dr. Weintraub), 0 opposed, and 0 abstentions, to approve the 1-year contract extensions with Eastern Bus

Company and Local Motion, Inc. for student transportation, as further described on Attachment G.

d. Proposed Revisions to the PSB Physical Restraint Policy (E 2 b): Second Reading and Possible Vote

This revised policy (Attachment H), to be known as *Time-Out Practices Inclusive of Physical Restraint Policy*, had a First Reading at the March 4, 2026 School Committee meeting.

ACTION 26-38

On a motion of Dr. Liu, and seconded by Dr. Hefter, the School Committee VOTED UNANIMOUSLY, by roll call, with 9 in favor (Ms. Frias, Ms. Moghtader, Ms. Federspiel, Dr. Hefter, Dr. Liu, Ms. Nobrega, Ms. Perry, Ms. Thall, and Dr. Weintraub), 0 opposed, and 0 abstentions, to approve the revisions to the Physical Restraint Policy (E 2 b), renamed to Time-Out Practices Inclusive of Physical Restraint Policy, as shown on Attachment H.

e. Proposed Revisions to the Administration of Medications in Schools and Delegation of Administration of Prescription Medications Policy (E 2 d): Second Reading and Possible Vote

This revised policy (Attachment I) had a First Reading at the March 4, 2026 School Committee meeting.

ACTION 26-39

On a motion of Ms. Federspiel, and seconded by Dr. Hefter, the School Committee VOTED UNANIMOUSLY, by roll call, with 9 in favor (Ms. Frias, Ms. Moghtader, Ms. Federspiel, Dr. Hefter, Dr. Liu, Ms. Nobrega, Ms. Perry, Ms. Thall, and Dr. Weintraub), 0 opposed, and 0 abstentions, to approve the revisions to the Administration of Medications in Schools and Delegation of Administration of Prescription Medications Policy, as shown on Attachment I.

f. Middle School Career Technical Education (CTE) Pathway Exploration Policy (new policy): Second Reading and Possible Vote

This new policy (Attachment J) had a First Reading at the February 26, 2026 School Committee meeting.

ACTION 26-40

On a motion of Ms. Nobrega, and seconded by Ms. Federspiel, the School Committee VOTED UNANIMOUSLY, by roll call, with 9 in favor (Ms. Frias, Ms. Moghtader, Ms. Federspiel, Dr. Hefter, Dr. Liu, Ms. Nobrega, Ms. Perry, Ms. Thall, and Dr. Weintraub), 0 opposed, and 0 abstentions, to approve the new Middle School Career Technical Education (CTE) Pathway Exploration Policy, as shown on Attachment J.

g. Proposed Revisions to the Instructional Materials/Workbooks Policy (Section I 2) of the PSB Policy Manual: First Reading

The School Committee conducted a First Reading of proposed revisions to the Instructional Materials/Workbooks Policy (Section I 2), with discussion focused on the scope, structure, and clarity of the revised draft. The new name for the policy is proposed to be “Curriculum and Instructional Materials” (Attachment K). Dr. Liu explained that the revised policy consolidates curriculum and instructional materials into a single, streamlined document, replacing a lengthy and outdated section of the policy manual. The revisions aim to clearly distinguish policy from procedure, and to better delineate the respective roles of the School Committee and staff. He noted that the policy calls for the Superintendent to develop and maintain procedures at the administrative level rather than be embedded in policy. The Policy Subcommittee, at their March 17, 2026 meeting, voted unanimously to advance this draft to the full School Committee for a First Reading.

Some members were concerned with the removal of the specific procedural detail about how parents or community members can raise curriculum questions or concerns. Dr. Liu noted that this is sufficiently addressed in the draft policy in the language requiring the Superintendent to establish procedures for community input and inquiry. It was suggested that a section in the policy, with a visible title labeled “complaints” or “inquiry”, would be more user-friendly and transparent. The importance of “feedback loops” was raised, including ongoing evaluation and data-informed decision-making, to ensure continuous improvement of curriculum. It was suggested that a clearer statement of the Committee’s vision and expectations for curriculum and instruction could strengthen the policy.

There was consensus that the draft policy should incorporate member feedback offered at tonight’s meeting, and return for a Second Reading.

h. Town of Brookline Environmentally Preferable Product (EPP) Procurement Policy: Review and Possible Vote to Support

Dr. Liu directed members to the memo and draft policy from Alexandra Vecchio and Miranda Hotham from the Town’s Sustainability and Natural Resources Division (Attachment L). The Town handles purchasing operations for the school department. Therefore, this policy will not become part of the PSB Policy Manual. Rather, the School Committee is being asked to support the policy and its adoption by the Select Board for the Town’s Policy Manual. The updates to the policy are required for the Town to remain eligible for funding through the Mass. Department of Environmental Protection’s recycling dividend program. The Policy Subcommittee, at their March 17, 2026 meeting, voted unanimously to recommend that the School Committee vote to support this policy.

ACTION 26-41

On a motion of Ms. Frias, and seconded by Ms. Nobrega, the School Committee VOTED UNANIMOUSLY, by roll call, with 9 in favor (Ms. Frias, Ms. Moghtader, Ms. Federspiel, Dr. Hefter, Dr. Liu, Ms. Nobrega, Ms. Perry, Ms. Thall, and Dr. Weintraub), 0 opposed, and 0 abstentions, to support the revisions to the Town’s Environmentally Preferable Products Procurement Policy as shown on Attachment L.

i. FY27 Repair and Maintenance Budget Request from the Building Department: Review and Possible Vote

Ms. Nobrega reminded members of the FY27 R&M Budget request sent to the School Committee on December 23, 2025 (Attachment M). Mr. Simmons requested \$3,943,395 for FY27 Repair and Maintenance services (a 4.5% increase over FY26 funding). This request was discussed at the January 14, 2026 and March 18, 2026 Finance and Capital Projects subcommittee meetings. The Building Department receives an automatic 2.5% increase from the Town every year, which increases the FY27 allocation to a minimum of \$3,633,085. The subcommittee recommended two actions by the full School Committee to offer some (though not all of the requested) additional R&M funding for FY27. Ms. Nobrega confirmed these options with Ms. Goff, Deputy Town Administrator. These changes do not impact the PSB operating budget; they represent internal adjustments within the Building Department allocation.

ACTION 26-42

On a motion of Ms. Nobrega, and seconded by Dr. Hefter, the School Committee VOTED UNANIMOUSLY, by roll call, with 9 in favor (Ms. Frias, Ms. Moghtader, Ms. Federspiel, Dr. Hefter, Dr. Liu, Ms. Nobrega, Ms. Perry, Ms. Thall, and Dr. Weintraub), 0 opposed, and 0 abstentions, to increase the FY27 School R&M budget by \$54,500, from \$3,627,335 to \$3,681,835, by reallocating the \$54,500 allocated for vehicle replacement to the repair and maintenance budget

ACTION 26-43

On a motion of Ms. Nobrega, and seconded by Ms. Federspiel, the School Committee VOTED UNANIMOUSLY, by roll call, with 9 in favor (Ms. Frias, Ms. Moghtader, Ms. Federspiel, Dr. Hefter, Dr. Liu, Ms. Nobrega, Ms. Perry, Ms. Thall, and Dr. Weintraub), 0 opposed, and 0 abstentions, to support the hiring of two HVAC techs, with the aim of achieving HVAC maintenance at a more efficient overall cost.

j. FY27 Deferred Maintenance/Mini-CIP List: Review, Discussion, and Possible Vote

Ms. Nobrega shared a revised FY27 Deferred Maintenance (mini-CIP) budget proposal, prepared collaboratively by Charlie Simmons, Director of Public Buildings for the Town, and PSB facilities and operations staff (Attachment N). CIP funds (including for mini-CIP/deferred maintenance items) carry forward across fiscal years, unlike operating funds, resulting in accumulated balances in certain accounts. The current FY27 allocation from the Town for this work is \$500,000. However, when combined with approximately \$1.3 million remaining from prior appropriations, the total available funding for deferred maintenance projects is almost \$1.8 million. The revised plan aligns this full funding amount with a prioritized list of projects, effectively consolidating past and current funds into a single, updated spending plan. Ms. Nobrega confirmed this action with Ms. Goff, Deputy Town Administrator.

ACTION 26-44

On a motion of Ms. Nobrega, and seconded by Ms. Frias, the School Committee VOTED UNANIMOUSLY, by roll call, with 9 in favor (Ms. Frias, Ms. Moghtader, Ms. Federspiel, Dr. Hefter, Dr. Liu, Ms. Nobrega, Ms. Perry, Ms. Thall, and Dr. Weintraub), 0 opposed, and 0 abstentions, to amend the FY27 funding for School Rehab/Upgrade by voting to transfer the remaining balance of \$1,293,047 (the balance of 3/26/26) from the FY25 appropriation to the current recommended appropriation for a new total of \$1,793,047.

7. SUBCOMMITTEE AND LIAISON REPORTS

a. Curriculum

Ms. Federspiel reported that the Curriculum Subcommittee met on March 25. The meeting featured a conversation with Anthony Meyer, BHS Head of School, and Hal Mason, BHS Assistant Head of School, about the Brookline High School Tutorial Program.

b. Finance and Capital Projects

Ms. Nobrega said that the Finance and Capital Projects Subcommittee met on March 18. In addition to several items that were already discussed throughout the course of this meeting, the subcommittee also discussed facility use, rentals and leases. Subcommittee members collected the relevant issues and questions about this topic in one document which is intended to serve as a foundation for future analysis and action.

c. Negotiations

Ms. Federspiel noted that efforts to reach a 1-year contract with the Brookline Educators Union were not successful. Instead, the Negotiations Subcommittee will resume negotiations for a 3-year successor contract. The next collective bargaining session with the BEU is scheduled for April 9. These sessions are recorded and made available on the School Committee's collective bargaining webpage.

d. Policy

Dr. Liu acknowledged the work done by the Policy Subcommittee that resulted in three new policies adopted at this evening's meeting, as well as another policy presented for a First Reading. The agenda for the subcommittee's April meeting is pending staff feedback on several draft policies.

e. Other Liaisons and Updates

Ms. Perry reported that she attended the Steps to Success board meeting earlier today. She was able to hear a very interesting presentation about how the Steps program is working to close opportunity gaps for low-income families in Brookline.

8. NEW BUSINESS

Dr. Hefter shared a document (Attachment O) summarizing action items he would like to see addressed by staff or the Committee. These items include: update the cell phone policy to restrict their use by BHS students; create and share a monthly PSB attendance report; work on the FY27 religious and cultural observances list to be sure it is correct and ready for families as early as possible; share an update on the hiring for Deputy Superintendents in Administration & Finance and Student Services; and a request to share his PSB Expense Tracker dashboard at an upcoming meeting.

Ms. Thall responded to comments made by Ms. Jayashankar in her student report (agenda item #2). Ms. Jayashankar reported on restrictions around Category I holidays for homework and exams. Ms. Thall reiterated a request she has made previously that work be done to align the Superintendent's annual homework letter/guidance around religious and cultural observances with the School Committee's homework policy.

9. PROPOSED EXECUTIVE SESSION

Ms. Frias announced that the School Committee would not be meeting in executive session.

10. ADJOURNMENT

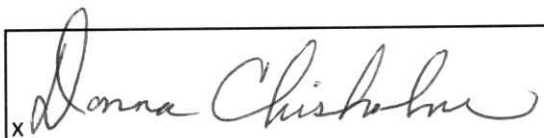
The meeting was adjourned at 9:15 PM.

Respectfully submitted,
Betsy Fitzpatrick
Executive Assistant
Brookline School Committee

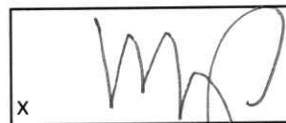
Town of Brookline - School Accounts Payable (AP) Report 3.20.26

Pay to each of the vendors named in the attached AP batches the sums set against their respective names, amounting in the aggregate to \$225,010.59

List of AP Batches		Amount
1	7657	instr. supplies 3,019.17
2	7680	(refreshments) meeting supplies 124.94
3	7683	instr. supplies 136.99
4	7684	// 615.41
5	7705	// 3,049.17
6	7736	Food svcs. 3,783.96
7	7737	// 2,495.25
8	7738	// 4,829.19
9	7748	instr. supplies 10,829.71
10	7749	transp / prof. svcs. 2,050.00
11	7753	instr. svcs. 1,187.56
12	7756	OSS svcs. 58,008.07
13	7759	instr. supplies 2,382.93
14	7762	// 24.34
15	7764	// 887.38
16	7770	// 9,743.56
17	7772	custodial supplies 330.00
18	7776	instr. supplies 9,072.17
19	7778	office supplies 5,097.95
20	7779	instr. supplies 2,293.49
21	7798	instr. svcs. 9,982.70
22	7800	instr supplies 4,139.80
23	7801	// 1,441.58
24	7802	// 1,415.82
25	7805	// 1,571.32
26	7812	OOD tuition 72,457.46
27	7827	scholarship 5,750.00
28	7842	instr. svcs 6,300.00
29	7843	instr. supplies 1,990.67
30		
31		
32		
		\$225,010.59

x 

Donna Chisholm, School Comptroller

x 

School Committee Member

PUBLIC SCHOOLS of BROOKLINE

STUDENT CIVIL RIGHTS POLICY¹

1. Commitment to Non-Discrimination

The Public Schools of Brookline is committed to maintaining an educational environment where students of all backgrounds and experiences are physically and psychologically safe, connected, encouraged, and can flourish. We aim to eliminate all forms of bias and bigotry, including discrimination based on race, color, age, physical or mental disability, pregnancy, homelessness, sex/gender, gender identity, religion, national origin, ancestry, sexual orientation, genetics, and natural or protective hairstyle. The Public Schools of Brookline is resolved that prejudice and disparate treatment will never impede our learners, consistent with our district goals:

- Joy in Learning
- Excellence in Teaching
- Culture of Collaboration
- Celebration of Differences
- Commitment to Equity
- Ethics of Wellness

Discriminatory behavior toward students of the Public Schools of Brookline, including intimidation, threats, or harassment by other students, employees, or anyone else who visits or is part of our learning community, is unacceptable and a violation of the Student Civil Rights Policy. Retaliatory conduct toward persons who have reported possible bias, discrimination, or inappropriate behavior, who have assisted in an investigation, or who have otherwise exercised their rights under this policy is also prohibited.

Conduct in violation of this policy includes any action, including verbal or nonverbal communication, that contributes to, promotes, or is complicit in disrupting the district's inclusive learning environment. Derogatory or intimidating statements, threats, acts of

¹ Thank you to the Boston Public Schools for sharing their Superintendent's Circulars with the Public Schools of Brookline, upon which this policy is largely based.

exclusion, or other mistreatment regarding a student's membership in or association with a member of a protected group, whether made in person or by telephone, postal mail, email, text or other messaging, social media posting, or any other means, will not be tolerated.

While this policy is aimed at promoting a learning environment that is free of discrimination or harassment of any kind, it is not intended to limit the district's authority to discipline or take remedial action to address misconduct by a student, employee, or other community member that is found to be inappropriate and bias-based and/or sexual in nature, regardless of whether that misconduct satisfies the definition of discrimination or harassment under the law.

This policy extends to all educational practices and programs, including:

- School admission, enrollment, or transfer
- Access to learning, including instruction, services, guidance practices, and school-sponsored curricular and extracurricular activities
- Grading and testing
- Discipline
- Reasonable accommodation for disabilities or religious practices
- Other terms and conditions of education

Schools will vigorously implement and actively enforce this policy to ensure that all of its daily operations are characterized by fairness, respect, and equity. Any violation of this policy will be viewed as serious misconduct and may result in discipline, up to and including termination of the offending employee or discipline of the responsible student consistent with the district's Code of Conduct. Retaliation against any person who has reported a possible violation or participated in any manner in an investigation, proceeding, or hearing of a report of a violation of this policy, will similarly be viewed as serious misconduct and may also result in discipline (up to and including termination for district employees).

All Public Schools of Brookline newly printed publications (e.g., school handbooks) for students, parents/caregivers, current or prospective employees, and the general public must contain the following nondiscrimination notice:

The Public Schools of Brookline prohibits discrimination in its programs, facilities, or employment or educational opportunities on the basis of race, color, age, criminal record (inquiries only), disability, pregnancy, homelessness, sex/gender, gender identity, religion, national origin, ancestry, sexual orientation, genetics,

natural or protective hairstyle, or military/veteran status, and does not tolerate any form of retaliation, or bias-based intimidation, threat, or harassment that demeans individuals' dignity or interferes with their ability to learn or work.

2. Defining Bias-Based Conduct Toward Students

Students of the Public Schools of Brookline are protected from bias-based conduct or discrimination based on race, color, age, disability, sex/gender, gender identity, religion, national origin, ancestry, retaliation, sexual orientation, genetics, natural or protective hairstyle, or homelessness. Employees of the Public Schools of Brookline who become aware of any possible bias-based conduct toward or involving students must report the incident or concern to their school leader, supervisor, and/or the Office of Student Services as soon as practicable, generally within the same school day. The same standard applies to partners or contractors providing services in or under the auspices of the Public Schools of Brookline.

In some instances, bias-based conduct that violates this policy may also violate PSB's Bullying Prevention Policy because it involves the repeated use of a written, verbal, or electronic expression and/or a physical act or gesture directed at a student that causes physical or emotional harm to the student or damage to their property; places the student in reasonable fear of harm and/or damage to their property; and disrupts the student's education process or school operations. When misconduct may constitute both bias-based conduct and bullying, the reported incidents will be investigated under both policies.

Examples of unacceptable bias-based conduct include treating students differently because of their membership in a protected group, such that the treatment interferes with or limits the student's ability to participate in or benefit from an educational opportunity or extracurricular program. Bias-based conduct also includes derogatory verbal, physical, written, print, or digital communication or conduct relating to a student's membership in a protected category. Any form of communication or physical action that creates an intimidating, threatening, or abusive educational environment will be immediately and thoroughly addressed.

Such conduct may originate with students as well as employees and may also be caused by other persons who participate, observe, or otherwise engage in a district-sponsored activity. Behavior that occurs in a location other than a Public Schools of Brookline (PSB) building or outside of PSB school or work hours may still constitute bias-based conduct and a violation of this policy if that behavior has the

effect of disrupting a student's ability to learn.

Examples of inappropriate bias-based behavior toward students that may violate this policy include:

- Speaking or otherwise communicating derisively to or about a student because of their membership in a protected group, such as their race, including the use of slurs
- Telling or digitally circulating jokes that are derisive toward members of a particular group, such as a student of a particular religious faith
- Using insulting nicknames for members of a protected group, such as a female student
- Refusing to allow students to participate in any activity because of their membership in a protected group, such as their sexual orientation, and in the absence of a legitimate nondiscriminatory reason for the refusal
- Disciplining a student more frequently or more harshly because of their membership in a protected group, such as their national origin
- Displaying pictures or taking any action that is derisive to any student based on their membership in a protected group
- Refusal to use the gender identity affirming name and/or pronouns that a student has stated

Students sometimes experience “microaggressions”: verbal or nonverbal communication that is rooted in implicit bias but does not rise to the level of a violation of this policy. Examples include:

- Mistaking one student for another because they share the same racial identity
- Complimenting a student for having a skill that is counter to a stereotype regarding their gender or ethnicity
- Assuming a student observes a particular religious holiday or has a particular sexual orientation
- Asking a student about their disability without their consent and/or the consent of their parent/caregiver

When microaggressions are reported, a school administrator or other PSB designee will partner with the student, parent/caregiver, and appropriate school staff to determine an effective intervention, such as coaching, mediation, restorative justice, or individual, classroom, or school-wide instruction or training.

3. Defining Sexual Misconduct Toward Students

The Public Schools of Brookline is committed to ensuring that students learn in an environment free of sexual misconduct. Sexual misconduct committed against a PSB student will not be tolerated.

Students participating in PSB academic, educational, extracurricular, athletic, and school programs or activities are protected from sexual misconduct by other students, parents/caregivers, PSB employees, contractors, and visitors. In addition, PSB students may be protected from sexual misconduct that occurs outside the context of a school's education program, activity, or school property, if the behavior was in connection with a school program or activity which includes locations, events, or circumstances over which the district exercised substantial control over both the person accused of the conduct and the context in which the sexual misconduct occurred.

The Public Schools of Brookline treats reports of sexual misconduct with the utmost seriousness. We will address any sexually inappropriate communication or behavior directed toward students, regardless of whether that conduct is unlawful.

For the purposes of this policy, sexual misconduct constitutes sexually inappropriate comments and/or behaviors of any kind, including sexual violence. Sexual violence is broadly defined as any sexual activity that is forced, coerced, or unwanted. It also includes any sexual act against another person who is incapable of giving consent, either because of their temporary or permanent mental, intellectual, or physical incapacity, or because they are a minor.

In some instances, sexual misconduct that violates this policy may also violate PSB's Bullying Prevention Policy because it involves the repeated use of a written, verbal, or electronic expression and/or a physical act or gesture directed at a student that causes physical or emotional harm to the student or damage to their property; places the student in reasonable fear of harm and/or damage to their property; and disrupts the student's education process or school operations. When misconduct may constitute both sexual misconduct and bullying, the reported incidents will be investigated under both policies.

Consent is defined as clear, active agreement and permission to engage in any form of verbal or nonverbal sexual communication or activity with another person. The initiator of the sexual contact is responsible for obtaining consent before engaging in any sexual contact. Consent can be withdrawn by either party at any point. Consent must be voluntary and may not be valid if a person is being subjected to an emotional,

psychological, physical, reputational, or financial threat, intimidation, or coercion. Consent to engage in one sexual activity, or past agreement to engage in a particular sexual activity, cannot be presumed to constitute consent to engage in a different sexual activity or to engage again in a sexual activity. Consent cannot be validly given by a person who is incapacitated or under the age of sixteen.

Sexual violence may include criminal acts, such as indecent assault and battery, rape, abuse, or assault with intent to rape. Any acts that may be criminal will be referred to law enforcement. Examples of sexual violence may include, but are not limited to, the following:

- Unwelcome sexual touching, including touching of the breast, thigh, or genital area
- Non-consensual sexual contact that occurs during school or non-school hours, on or off school grounds, including dating violence
- Recruiting, transporting, obtaining, or providing a student of any gender for the purpose of sex

Other forms of sexual misconduct include unwelcome conduct of a sexual nature that denies or limits, on the basis of sex, a student's ability to participate in or to receive benefits, services, or opportunities in the school's program or activities. Examples of behavior that may constitute sexual misconduct depending upon the totality of the circumstances, the ages of the student or other individuals involved, and the severity and pervasiveness of the conduct, include but are not limited to:

- Sexual advances or requests for sexual favors, whether or not they involve touching
- Making an educational decision or benefit contingent upon a student's submission to unwelcome sexual conduct
- Offensive public sexual display of affection, including groping, fondling, gestures, or inappropriate touching of oneself or others
- Consensual groping, fondling, sexual touching, or sex in a PSB building, on school property, or at any school-sponsored activity
- Sexual jokes or references
- Comments regarding a student's body or a student's sexual activity or orientation
- Offensive name-calling or profanity that is sexually suggestive, sexually degrading, or based on sexual stereotypes or sexual orientation
- Different treatment because of a student's pregnancy status
- Displaying or distributing sexually explicit messages or images of any kind
- Trafficking of youth for sexual purposes, such as recruiting, transporting, or otherwise exploiting a minor in exchange for money, shelter, or food

- Sexual advances or contact, whether or not they are consensual, between a student and adult employee, contractor, or community partner
- Other verbal, nonverbal, or physical conduct of a sexual nature.

Any student, regardless of gender identity or sexual orientation, can be a target of sexual misconduct, and the alleged targets and the subject of the concern can be of the same or different genders.

PSB employees or volunteers who become aware of any possible sexual misconduct toward or involving students must report the incident or concern to their school leader or other school administrator, supervisor, and/or the Office of Student Services as soon as practicable, generally within the same school day. The same reporting requirement applies to community partners or contractors providing services to students in or under the auspices of the Public Schools of Brookline.

The above list of examples is not exhaustive. If you are unsure whether a student may have been a target of sexual misconduct or if you have knowledge of a possible incident of sexual misconduct involving a student, immediately contact your school principal/head of school, supervisor, or the Office of Student Services.

4. Reporting Allegations of Bias-Based and Sexual Misconduct

Reports to School Administrators

Students, parents/caregivers, and other community members are **encouraged** to report concerns regarding incidents that may constitute bias-based or sexual misconduct toward a student to their school's principal or head of school, or another school administrator. It is advised to file this report as close to the time of the incident as possible, as matters are generally more easily resolved the sooner they are reported. Reporting a possible violation will not be construed as reflecting unfavorably on a student, parent/caregiver, employee, or other community member's good standing, academic performance, loyalty, or desirability to the Public Schools of Brookline.

Please note that PSB employees are **required** to report any incidents they become aware of that may constitute bias-based or sexual misconduct toward a student, and may be subject to discipline for failing to report an incident and/or failing to report an incident timely. They may report an incident to a principal, head of school, the Office of Student Services, or any Central Office department head. Incidents that a PSB employee becomes aware of indirectly, such as from a written note or an overheard conversation,

will also be investigated.

A school administrator will ask the reporter for information regarding the incident(s) and may request, though not require, that the reporter submit a written statement. The administrator will ensure that assistance is provided in preparing such a written statement if needed.

The principal or head of school (or their designee) will ensure that any next steps are carried out consistent with this policy and appropriately documented in partnership with the Office of Student Services. Anonymous reports will be investigated to the extent possible.

Reports to the Office of Student Services

Students, parents/caregivers, employees, or other community members who do not wish to seek assistance from their school's principal or head of school, or who are dissatisfied with a school administrator's steps to address a report, may bring their concerns directly to the Office of Student Services (OSS). To report a concern to OSS, a student, parent/caregiver, or employee may:

- A. Write, call, or email Karen Shmukler, Interim Deputy Superintendent of Student Services, Town Hall, 333 Washington Street, 5th Floor Brookline, MA 02445, 617-730-2447, karen_shmukler@psbma.org

-or-

- B. Complete the Community Incident Reporting Form available at this [link](#).

Nothing in this policy shall prevent a student, parent/caregiver, employee, or other community member from reporting a concern directly to the Office of Student Services.

A member of the Office of Student Services staff will ask the reporter for information regarding the incident(s) and may request, though not require, that the reporter submit a written statement. OSS will ensure that assistance is provided in preparing such a written statement if needed.

After a report is received, the Office of Student Services (or their designee) will notify the appropriate school leader(s) and/or the individual about whom the report has been filed. The Office of Student Services will designate a school administrator or OSS staff member to investigate or otherwise address the concern. Anonymous

reports will be investigated to the extent possible.

5. Prohibition of Retaliation

Retaliation against any student, parent/caregiver, employee, contractor, or other community member for reporting or participating in any way in the reporting or investigative procedure related to any violation of this policy is strictly prohibited and will not be tolerated. Students, parents/caregivers, or employees who exercise their rights under any section of this policy are protected from retaliatory conduct. Reports of retaliation may be made in the same manner as any concern regarding possible bias-based or sexual misconduct.

6. Investigating Possible Bias-Based and/or Sexual Misconduct

Detailed protocols regarding investigations of possible bias-based or sexual misconduct are provided in a separate document entitled, the *Public Schools of Brookline Student Civil Rights and Bullying Incident Response Protocol*. This policy provides basic information about the process and is available at this [link](#).

PSB will take all concerns regarding possible bias-based or sexual misconduct seriously. Any interim measures needed to ensure the safety of the students involved and maintain their access to educational programs and activities must be taken upon receipt of the report consistent with district protocols.

PSB will promptly investigate allegations of bias-based or sexual misconduct even when the incident is being investigated by law enforcement or another entity. Our obligation is to determine if there has been a violation of this policy and/or the PSB Code of Conduct. The investigation will be conducted in a manner maintaining confidentiality to the extent practicable under the circumstances.

Generally, an employee who is an administrator at the school that the subject(s) of the investigation attends will be designated to investigate. The designated investigator must be thoroughly familiar with PSB policies and protocols, and ideally, will have completed investigative skills training and established meaningful relationships with most or all of the involved students and parents/caregivers.

In some instances, a central office administrator may be designated, for example, in cases where the allegations are egregious and/or where an employee is the subject of the investigation.

After receiving a report of bias-based or sexual misconduct, the school leader or other designated school administrator will determine and promptly take the next steps. Depending on the nature of the alleged incident, those steps may include:

- A. In the event of sexual or physical violence, contacting the Brookline Police Department, calling 911, and/or seeking assistance from the school nurse.
- B. Ensuring that a student who discloses sexual violence or other egregious sexual misconduct is not interviewed by any other PSB employee subsequent to the initial disclosure to preserve the integrity and reliability of any criminal investigation.
- C. Assessing the need for emergency interim safety measures (a “safety plan”) to actively prevent any additional incidents, and ensure that all of the students involved are able to fully engage in the school’s programs and activities.
- D. Contacting the Department of Children and Families (DCF) to file a 51A report that same day (or in rare circumstances, early the following morning) if the allegation warrants. As mandated reporters, PSB employees are required to report situations when there is reasonable cause to believe a student is suffering from any physical or emotional injury that causes harm or a substantial risk of harm.
- E. If the allegations are egregious, contacting the Office of Student Services for assistance in ensuring all needed steps are taken.
- F. Notifying the parent/caregiver(s) of the students who were directly impacted.
- G. Submitting Section 1 of the Civil Rights and Bullying Incident Response Documentation Form within the same school day, if possible, but always within 48 hours of the incident.
- H. In collaboration with the Office of Student Services, determining if whole classroom or whole school community communication is warranted based on the impact on the learning environment.
- I. Investigating and documenting the allegation, including interviews with individuals who have pertinent information, and any other relevant evidence,

such as documents, emails, text messages, social media posts, or video footage. PSB employees and students are obligated to cooperate with any investigation, including promptly providing any requested information or electronic evidence. Information regarding the allegations must be kept confidential to the extent practicable. During the investigation, the alleged target of the misconduct should not discuss the incident with the subject of the concern present under any circumstances.

- J. Completing the investigation within 10 school days of the incident.
- K. Determining whether there was a violation of this policy, and if so, how to address what occurred consistent with the Code of Conduct. In addition, assess what preventive, remedial, and restorative practices will help address the incident(s), including classroom instruction, training, alternative dispute resolution, or restorative justice.
- L. Submitting Section 2 of the Civil Rights and Bullying Incident Response Documentation Form within 10 school days of the incident.
- M. Notifying all parties, including impacted students' parents/caregivers, that the investigation has concluded, and whether a policy violation was found by email and/or mail.

7. Making and Addressing Investigative Findings

In determining whether the alleged conduct constitutes a violation of this policy, the investigator will, in partnership with the Office of Student Services, consider the surrounding circumstances, the nature of the behavior, the relationships between the parties involved, and the context in which the alleged incidents occurred. A determination of whether a particular action or incident constitutes a violation of the policy will be based on all of the facts and the preponderance of the evidence (i.e., that it is more likely than not that a violation occurred).

If the investigation results in a finding of a violation of this policy, PSB will take the necessary steps to end the misconduct, prevent any further misconduct, remedy its effects where appropriate, and take disciplinary action as appropriate under the circumstances.

- Refer individuals found to have violated this policy for disciplinary action when

appropriate.

- *For employees*, such action may include written warning, suspension, termination, or another action deemed appropriate under the circumstances.
 - *For students*, such action may include suspension, expulsion, or another action deemed appropriate under the circumstances. (For more information on student discipline, please see the Code of Conduct.)
- Require students, employees, or other community members found to have violated this policy to attend instruction or training, as appropriate.

8. Nondiscrimination on the Basis of Gender Identity

The Public Schools of Brookline prohibits bias and discrimination on the basis of gender identity. All students need a safe and supportive school environment to develop academic and social-emotional skills. Administrators, faculty, staff, and students each play an important part in creating and sustaining that environment. This policy is intended to create a culture in which transgender, gender nonbinary, and gender nonconforming students feel safe, supported, and included, and to meet each school's obligation to provide equal educational opportunities for all students.

Definitions

Understanding the terminology associated with gender identity is important to providing a safe and supportive school environment. Please note that terminology evolves over time, and the best practice is to ask individuals how they identify and respect their preferred terms.

Gender expression: how a person represents or expresses gender to others, often through behavior, clothing, hairstyles, activities, voice, or mannerisms.

Gender identity: a person's gender-related identity, appearance, or behavior, whether or not that identity, appearance, or behavior is different from that traditionally associated with the person's physiology or assigned sex at birth.

Gender nonbinary: a term to describe people who identify as neither male nor female, and may use the pronoun, "they." Other similar terms include genderqueer and genderfluid.

Gender nonconforming: a term to describe people whose gender expression differs from stereotypic expectations. This may also include people who identify as gender diverse or gender expansive.

Transgender: a person whose gender identity or gender expression is different from that traditionally associated with the assigned sex at birth.

Gender transition: the experience by which a person goes from living and identifying as one gender to living and identifying as another. For most youth, gender transition involves no medical intervention.

Names and Pronouns

In Massachusetts, an individual may adopt a name that is different from the name that appears on their birth certificate. PSB shall accurately record the student's chosen name on all records, whether or not the student or parent/caregiver provides the school with a court order formalizing a name change. For students who undergo a gender transition while attending the same school, the PSB will work with the student and/or parent/caregiver(s) on a plan for initiating the use of the chosen name and pronouns consistent with the student's gender identity.

Privacy, Confidentiality, and Student Records

Some transgender, gender nonbinary, and gender nonconforming students are not open about their gender identity at home due to safety concerns or lack of acceptance. School personnel will speak with the student first before discussing a student's gender nonconformity or transgender status with their parent/caregiver, including discussing how the school should refer to the student, e.g., appropriate pronoun use, in communication with their parent/caregiver.

Under state law, information about a student's assigned birth sex, name change for gender identity purposes, gender transition, medical or mental health treatment related to gender identity, or any other information of a similar nature, is part of their student record, is considered confidential, and must be kept private and secure. When determining which, if any, staff or students should be informed that a student's gender identity is different from their assigned sex at birth, decisions should be made in consultation with the student, or in the case of a student under 14, the student's parent/caregiver. The key question is whether and how sharing the information will benefit the student. Please see [this document](#) for PSB's Gender Support Plan.

Transgender, gender nonbinary, and gender nonconforming students may decide to discuss and express their gender identity openly and may decide when, with whom, and how much to share private information. A student who is 14 years of age or older, or who has entered the ninth grade, may consent to disclosure of information from their student record. If a student is under 14 and not yet in the ninth grade, the student's parent/caregiver (alone) has the authority to decide on disclosures and other student record matters.

Gender Markers on Student Records

A gender marker is the designation on school and other records that indicates a student's gender. For most students, records that include an indication of a student's gender will reflect a student's assigned sex at birth. For transgender students, however, a documented gender marker (for example, "male" or "female" on a permanent record) should reflect the student's gender identity. For example, upon request by a transgender student whose gender identity is male (or their parent/caregiver, if they are under 14), the school should change the gender marker on the record to male.

Transgender students who transition after completing high school may ask to amend school records consistent with their gender identity, including reissuing a high school diploma or transcript.

Restrooms, Locker Rooms, and Changing Facilities

All students are entitled to have access to restrooms and changing facilities that are sanitary, safe, adequate, and consistent with their gender identity, so they can comfortably and fully engage in their school program and activities. Each situation needs to be reviewed and addressed based on the particular circumstances of the student and the school facilities. Transgender students who are uncomfortable using a sex-segregated restroom or changing facility should be provided with a safe and adequate alternative, such as a single "all gender" restroom or nurse's restroom.

Physical Education Classes and Athletic Activities

Where there are sex-segregated physical education classes or athletic activities, including intramural and interscholastic athletics, all students must be allowed to participate in a manner consistent with their gender identity.

Dress Codes

The PSB shall not require students to wear gender-based clothing for school attendance, field trips or graduations, nor have gender-based dress codes for prom, special events, athletics, or any other school-related activity.

9. Expectant and Parenting Students

Expectant and parenting students have the right to choose how and when they seek services and support from school staff, and to have their health and personal information kept confidential, including from other students and staff who are not required to be informed, except in circumstances involving their physical safety. When a student informs a staff member of their expectant or parenting status, the staff member must inform their head of school within a reasonable time period, and make the student aware of the need to inform the head of school. Staff must not force or coerce a student to inform their parent/caregiver, or any other individual, of their pregnancy or related information.

School staff must not disclose information about a student's expectant or parenting status to their parent/caregiver without their permission. Staff should encourage the student to consider informing their parent/caregiver about the pregnancy and decisions related to that pregnancy. Medical professionals within a school building may keep confidential medical records on pregnant students who have sought treatment.

Bias-based conduct toward any expectant or parenting student is prohibited, and expectant or parenting students may not be excluded from any school, program, class, or extracurricular activity on the basis of their expectant or parenting status. All school staff must maintain and communicate high academic expectations for all students, regardless of expectant or parenting status.

10. Rights of Students with Disabilities

The Public Schools of Brookline is committed to preventing and addressing any form of bias-based conduct toward students with disabilities, and to providing students with reasonable ("Section 504") accommodations to ensure they have full access to all instruction, extracurricular activities, and other school-sponsored activities. A qualified student with a disability is an individual with a mental, intellectual, or physical impairment that substantially limits a major life activity, such as walking, seeing, hearing, speaking, or learning. A student with a severe allergy, such as an airborne tree nut allergy, may also be considered a student with a disability.

A reasonable accommodation is one that would not pose an undue burden on the PSB by being unduly costly, extensive, substantial, or disruptive, or by fundamentally altering the nature or operation of a PSB program, service, or activity. Depending on the circumstances, examples of reasonable accommodations may include access to a school elevator, wheelchair-accessible transportation to school and school-sponsored activities, additional time to complete testing, assistive technology, or removal of an architectural barrier.

Students or their parents/caregivers who are seeking reasonable accommodations related to a student's disability should direct their request to their school-based 504 coordinator. The 504 coordinator or designee will work with the student, their parent/caregiver, and their instruction team to determine reasonable accommodations (a "Section 504 Plan") with clear timelines establishing whether each element must be annually reevaluated, reevaluated in the event of enrollment at a different PSB school, or will be implemented for the duration of that student's enrollment in any PSB school. More information about 504 Accommodation Plans can be found on the [PSB website](#).

11. Rights of Students Requesting Religious Accommodations

The Public Schools of Brookline is committed to preventing and addressing bias-based conduct toward students based on their religious identity or observance. In addition, PSB provides reasonable accommodations for students who need a modification to their instructional expectations or other aspects of their education in order to observe or practice their sincerely held religious belief. A reasonable accommodation is one that would not pose an undue burden on the PSB by being unduly costly, extensive, substantial, or disruptive, or by fundamentally altering the nature or operation of a PSB program, service, or activity. Depending on the circumstances, examples of reasonable accommodations may include excused absences for religious observances, allowing head coverings or other religious garments, and planning tests and activities around religious holidays.

PSB designates various state, federal, cultural, and religious holidays in three categories. On Category 1 holidays, school is closed, and no homework will be assigned in any class on the last day of school before that holiday. In addition, any assignments cannot be due nor tests held until at least the second school day after the holiday, even in the case of a longer school vacation. On Category 2 holidays, school is in session, but no homework will be assigned on the last day of school before the holiday, and any assignments cannot be due nor tests held until at least the second school day after the holiday. On Category

3 holidays, school remains in session and adjustments to assignments or tests are not standard. Information about which holidays are designated as Category 1, 2, or 3 is available on the PSB school calendar each year.

12. Annual Reporting

PSB's Title VI Coordinator and Title IX Coordinator shall be responsible for maintaining records of all reports of bias-based conduct or sexual misconduct. The Coordinator(s) will prepare an annual report to the Superintendent and School Committee (without personal identifying information) regarding the number and nature of reports, whether a finding of a policy violation was made in each case, and any trends in this data. This annual report shall be submitted no later than August 1 of each year and shall be publicly posted in a manner accessible to the general public by August 15 of that same year.

In addition, the Section 504 Coordinator shall be responsible for maintaining records of all requests for Section 504 accommodations, and all resulting 504 Plans. The Coordinator will prepare an annual report to the Superintendent and School Committee (without personal identifying information). This annual report shall be submitted no later than August 1 of each year and shall be publicly posted in a manner accessible to the general public by August 15 of that same year.

13. Key Contacts for Civil Rights Concerns and More Information

The Public Schools of Brookline's Section 504 Coordinator is responsible for ensuring compliance with the accommodation rights of students with disabilities. Any student, parent/caregiver, or employee with related concerns or questions, or who wish to request a religious accommodation for a student, may contact the district's Section 504 Coordinator:

Matt DuBois
Senior Director of Clinical Services and Social Emotional Learning
Town Hall, 333 Washington Street, 5th Floor Brookline, MA 02445
Phone: 617-730-244
Fax: 617-730-2066
Email: matthew_dubois@psbma.org

The Public Schools of Brookline's Title VI Coordinator is responsible for ensuring compliance with the bias-based conduct investigatory process and related rights and

responsibilities outlined in this policy, and tracking incidents across the district. Any student, parent/caregiver, or employee with related concerns or questions may contact the district's Title VI Coordinator:

Karen Shmukler
Interim Deputy Superintendent of Student Services
Town Hall, 333 Washington Street, 5th Floor Brookline, MA 02445
Phone: 617-730-2447
Fax: 617-730-2066
Email: karen_shmukler@psbma.org

The Public Schools of Brookline's Title IX Coordinator is responsible for ensuring compliance with the sexual misconduct investigatory process and related rights and responsibilities outlined in this policy, and tracking incidents across the district. Any student, parent/caregiver, or employee with related concerns or questions may contact the district's Title IX Coordinator:

Karen Shmukler
Interim Deputy Superintendent of Student Services
Town Hall, 333 Washington Street, 5th Floor Brookline, MA 02445
Phone: 617-730-2447
Fax: 617-730-2066
Email: karen_shmukler@psbma.org

14. State and Federal Remedies

Using the PSB civil rights reporting process does not prohibit any individual from also filing a complaint with a state or federal agency. These agencies have a short time period for filing a claim as indicated below.

- *For incidents involving discrimination against students (must be filed within 180 days):*
U.S. Department of Education Office for Civil Rights (OCR)
Information about filing a complaint can be found at this [link](#).
- *For concerns regarding students' equitable access to education (must be filed within the same school year):*
Problem Resolution System Office
Massachusetts Department of Elementary and Secondary Education (DESE)

135 Santilli Highway
Everett, MA 02149
Email: DESECompliance@mass.gov

- *For concerns regarding civil rights related to school-provided meals (must be filed within 180 days):*

U.S. Department of Agriculture (USDA)
Director, Center for Civil Rights Enforcement
1400 Independence Avenue, SW
Washington, DC 20250-9410
Email: program.intake@usda.gov

DRAFT

Overview

Civil Rights Policy

March 26, 2026

Legal Framework

Mass General Law Chapter 76, § 5

No person shall be excluded from or discriminated against in admission to a public school of any town, or in obtaining the advantages, privileges and courses of study of such public school on account of race, color, sex, gender identity, religion, national origin, immigration or citizenship status, disability or sexual orientation.

Legal Framework

- **Chapter 76, Section 5** of the Massachusetts General Laws prohibits discrimination based on gender identity, sex, sexual orientation, and perceived sexual orientation in all Massachusetts schools.
- The Acts of 2011 **Chapter 199** was legislation that updated Massachusetts law to include "gender identity" as a protected class.
- **Chapter 151C**, which defines fair educational practices, prohibits sexual harassment by public school teachers, staff, or other students.
- Schools are also required to take certain steps to prevent the harassment of LGBTQ+ students, per the Code of Massachusetts Regulations [603 CMR 26.00](#), Access to Equal Educational Opportunity.

Legal Framework

- Compliance with state and federal student civil rights laws
 - Title VI and Title IX
 - Chapter 76, 151C, and 199
 - 603 CMR 26.00
- Compliance with Department of Elementary and Secondary Education guidance, including on Nondiscrimination on the Basis of Gender Identity
- Crown Act, 2022
- Consistent with best practices, including from the MA Attorney General and MA Executive Office of Public Safety & Security

Implementation: Gender Identity

Superintendents and principals need to review existing policies, handbooks, and other written materials to ensure that they are updated to reflect the inclusion of *gender identity* in the student antidiscrimination law, and may wish to inform all members of the school community, including school personnel, students, and families, of the recent change to state law and its implications for school policy and practice.

Implementation: Gender Identity

In order to further a safe and supportive school environment for all students, schools should incorporate education and training about transgender and gender nonconforming students into their anti-bullying curriculum, student leadership trainings, and staff professional development.

Implementation: CROWN ACT

The Massachusetts CROWN Act (Chapter 117), effective October 24, 2022, bans discrimination based on natural and protective hairstyles (e.g., braids, locks, twists, Bantu knots) in workplaces and K-12 public/charter schools. It expanded the legal definition of "race" to include these hair traits to protect against discrimination.

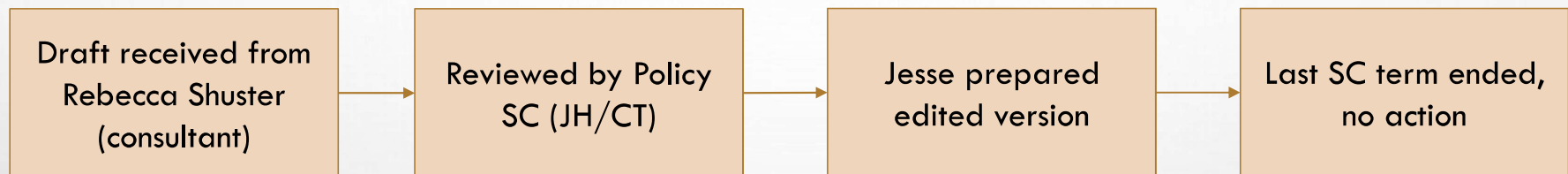
Recent Guidance

[Guidance on Schools' Legal Obligations Regarding Hate and Bias Incidents | Mass.gov](#)

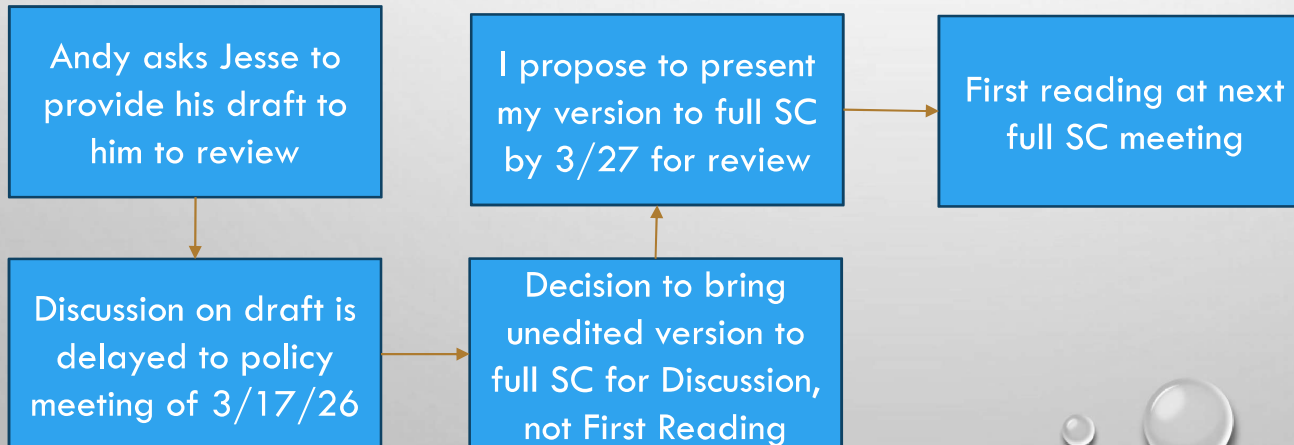
Mass. Special Commission on Combating Antisemitism K-12 Findings and Recommendations

PSB CIVIL RIGHTS POLICY REVIEW

2024-2025 (Steven Ehrenberg)



2025-2026 (Andy Liu)



MY APPROACH TO EDITING THE ORIGINAL DRAFT

- Maintain all required sections of the Policy
- Refining the language to reflect a non-ideological approach
- Examples:
 - “Microaggression” can be reworded as “a brief, everyday comment or action that unintentionally communicates exclusion or stereotype”
 - “Bias-based Conduct” can be reworded as “disrespectful behavior”
 - For Example: “Students should avoid disrespectful conduct toward others.”
- The policy I edited contains language that aims to remain neutral and broadly accessible, avoiding terminology that may be associated with any particular ideological framework



BELLA WONG
SUPERINTENDENT OF SCHOOLS

THE PUBLIC SCHOOLS OF BROOKLINE
BROOKLINE, MASSACHUSETTS 02445

SUSAN K. GIVENS, Ed.D.
DEPUTY SUPERINTENDENT FOR ADMINISTRATION & FINANCE

Request for Gift Acceptance

March 26, 2026

Motion: The School Committee accepts the gifts as described below.

Donor	Amount	Recipient/Purpose	Account #/Name
Anonymous	\$10,000.00	Brookline High School/To support student financial assistance for Brookline High School international travel	3300SEF9/Brookline High School Gift Account
Ruffin Ridley School PTO	\$1,022.76	Ridley School/Discovering Justice fall stipend	3300SEF2/Ridley School Gift Account



The Public Schools of Brookline

Brookline Town Hall
333 Washington Street, 5th Floor
Brookline, Massachusetts 02445

Susan K. Givens, Ed.D.
*Deputy Superintendent of
Administration and Finance*

TO: Brookline School Committee

FROM: Susan Givens, Ed.D., Deputy Superintendent of Administration and Finance

RE: Contract Renewals for Temple Emeth and Temple Ohabei Shalom

DATE: March 20, 2026

CC: Bella Wong, Superintendent
Jose Albuquerque, Director of Operations

PSB entered into lease agreements with Temple Emeth in 2019 and Temple Ohabei Shalom in 2020 to provide classroom space for BEEP programming. Each agreement was originally structured as a three-year lease with seven one-year renewal options. Fiscal Year 2027 (FY27) represents the fifth option year for Temple Emeth and the fourth option year for Temple Ohabei Shalom.

The total estimated FY27 cost is \$809,342. Annual rate increases are determined by the Boston Consumer Price Index (CPI), as published by the U.S. Bureau of Labor Statistics in May. A breakdown of costs is shown in the table below:

Classroom Capacity Leases (FY27-FY29)				
Organization	FY27	FY28	FY29	Last Option Yr
Temple Emeth (Putterham)	\$452,027	\$479,149	\$507,898	8/31/2029
Temple Ohabei Shalom (Beacon)	\$357,315	\$380,540	\$405,275	7/31/2030
Total	\$809,342	\$859,689	\$913,173	

Given the ongoing programmatic need for BEEP classroom space, and the favorable location of Temple Emeth in South Brookline, I recommend exercising the option to extend both leases through FY27.

Sincerely,

Susan Givens, Ed.D.



The Public Schools of Brookline

Brookline Town Hall
333 Washington Street, 5th Floor
Brookline, Massachusetts 02445

Susan K. Givens, Ed.D.
*Deputy Superintendent of
Administration and Finance*

TO: Brookline School Committee

FROM: Susan Givens, Ed.D., Deputy Superintendent of Administration and Finance

RE: Contract Renewals for Eastern Bus Co. and Local Motion, Inc.

DATE: March 18, 2026

CC: Bella Wong, Superintendent
Jose Albuquerque, Director of Operations

PSB entered into a contract with Eastern Bus Co. for in-town bus services and Local Motion Inc. for METCO bus services in FY21. The contract is structured as a three-year agreement with five one-year renewal options. FY27 represents the seventh year of the current agreement, with FY28 as the final renewal year. A new contract will be procured through a public bidding process for FY29.

The anticipated cost for FY27 is \$432,000 for regular in-town bus service and \$400,000 for METCO service. The contractual rate increase of 3.1% for both services compares favorably to increases experienced by other Massachusetts school districts, which have ranged from 8% to 26% due to inflation, limited competition in bidding, and ongoing driver shortages.

Based on the quality of service and the relatively modest cost increase, I recommend renewing the contracts with Eastern Bus Company and Local Motion for FY27.

Brookline School Committee
March 26, 2026
Second Reading

E 2 b. Time-Out Practices Inclusive of Physical Restraint: (Voted 2/27/03, #03-12 and #03-13; 2/14/13, #13-12; 12/17/15, #15-84; 4/28/16, #16-24; 4/7/22, #22-23)

I. Introduction

It is the policy of the Brookline School Committee to promote a safe and productive workplace and educational environment for its employees and students, and to ensure that every student in the Brookline Public Schools is free from the use of physical restraint and seclusion that is consistent with the Massachusetts Department of Elementary and Secondary Education regulations, and that physical restraint and seclusion shall only be used with extreme caution as a last resort in emergency situations, supervised, after other lawful and less intrusive alternatives have failed or been deemed inappropriate.

We believe in preventive and positive approaches to discipline with interventions and consequences aimed at addressing the causes of misbehavior, resolving conflicts, meeting students' needs, and keeping students in school. We believe it is the responsibility of all school staff, students, families, and the community to contribute to a school community that promotes a safe, secure, and learning environment. Preventive and positive discipline is a shared responsibility for students, administrators, teachers, families, and the community. School personnel shall only administer a physical restraint as a last resort when it is needed to protect a student and/or a member of the school community from imminent, serious, physical harm. When a physical restraint needs to be administered, school personnel shall seek to prevent or minimize any harm to the student as a result of the use of the physical restraint. School personnel shall further ensure that the physical restraint is supervised by another adult as quickly as practicable.

This policy shall not be construed to limit the protection afforded to publicly funded students under other federal and state laws, including those laws that provide for the rights of students who have been found eligible to receive special education services. Additionally, this policy shall not be construed to preclude any teacher, employee or agent of a public education program from using reasonable and necessary force to protect students, other persons or themselves from assault or imminent, serious, physical harm.

The Superintendent will develop written procedures and guidelines related to this policy identifying:

- Appropriate responses to student behavior that may require immediate intervention;
- Alternative methods that should be used first when seeking to prevent student violence, self-injurious behavior and/or de-escalating potentially dangerous behavior occurring among groups of students or with an individual student, including alternative methods in emergency situations that avoid resorting to physical restraint.

- Methods for engaging parents in discussions about restraint prevention and use of restraint solely as an emergency procedure;
- A statement prohibiting: medication restraint, mechanical restraint, prone restraint unless permitted by 603 CMR 46.03(1)(b), seclusion, and the use of physical restraint in a manner inconsistent with 603 CMR 46.00;
- A process for obtaining Principal/Head of School approval for a time out exceeding 30 minutes.
- A process for notifying families of any time out exceeding 30 minutes.

II. District's Physical Restraint Procedures

A. Definitions

"Consent" shall mean agreement by a parent/guardian/caregiver who has been fully informed of all information relevant to the activity for which agreement is sought, in their native language or other mode of communication, that the parents/guardians/caregivers understand and agree in writing to the carrying out of the activity, and understand that the agreement is voluntary and may be revoked at any time. The agreement describes the activity and lists the records (if any) which will be released and to whom.

"Restraint" shall mean limitation on a student's physical movement using force against the student's resistance.

"Physical restraint" shall mean direct physical contact that prevents or significantly restricts a student's freedom of movement. The term physical restraint does not include prone restraint, mechanical restraint, or medication restraint. Additionally, physical restraint does not include: providing brief physical contact, without force, to promote student safety or limit self-injurious behavior, providing physical guidance or prompting when teaching a skill, redirecting attention, providing comfort, or a physical escort.

"Physical escort" shall mean a temporary touching or holding, without the use of force, of the hand, wrist, arm, shoulder, or back for the purpose of inducing a student who is agitated to walk to a safe location.

"Mechanical restraint" shall mean the use of a physical device to restrict the movement of a student or the movement or normal function of a portion of their body. A protective or stabilizing device ordered by a physician shall not be considered a mechanical restraint. The use of a mechanical restraint is prohibited unless explicitly authorized by the student's physician and consented to in writing by the parents/guardians/caregivers of the student.

Seclusion is defined as the involuntary confinement of a student alone in a room or area, with or without adult supervision, from which the student is not permitted to leave. "The term does not include: a classroom or school environment where, as a general rule, all students need permission to leave the room or area, such as to use the restroom; a behavior support technique that is part of the district's, school's or program's designated procedures for behavior support which involves the monitored separation of a student in an unlocked setting, from which the student is allowed to leave and it is implemented for the purpose of calming; or placing a student in a separate

location within a classroom with others or with an instructor, so long as the student has the same opportunity to receive and engage in instruction.”

The use of seclusion is expressly prohibited, except in an emergency situation in which the student poses an imminent threat of assault or serious physical harm, and only when all other less intrusive interventions have been deemed ineffective or inappropriate. The emergency use of seclusion may only be used with the required safeguards in place which include active monitoring- at all times during the emergency, a staff member is continuously and actively monitoring and observing the student and is immediately available to the student- timely parent and principal notification, and ongoing data review at the school level to reduce and ultimately eliminate the use of seclusion in alignment with 603 CMR 46.00. All incidences of seclusion must be reported to DESE.

The Preconditions for Use of Emergency Seclusion are:

- It is used as a last resort on an individual student basis, where a student’s behavior poses an imminent threat of assault or imminent risk of serious physical harm to self or others
- The student is not responsive to directives or other lawful and less intrusive behavior interventions, or such interventions are deemed to be inappropriate under the circumstances
- Other interventions have failed to ensure the safety of the student and/or others
- The student has a documented history of repeatedly causing serious self-injuries and/or injuries to other students or staff
- There are no medical contraindications, as documented by a licensed physician.
- There is psychological or behavioral justification and there are no psychological or behavioral contraindications, documented by a licensed mental health provider.
- The parent or guardian (and student, if appropriate) has provided consent for emergency use of seclusion.
- The principal has approved the use in writing.
- Staff implementing seclusion have documented participation in training in behavioral alternatives.
- All documentation demonstrating compliance with 603 CMR 46.07(2)(a) and (d)–(g) is maintained on file.

The emergency use of seclusion must cease as soon as the student’s behavior no longer poses a threat of assault or immediate serious physical harm.

Time-out is defined as a behavioral support strategy in which a student temporarily separates from the learning activity or the classroom, either by choice or by direction from staff, for the purpose of calming. During time-out, a student must be continuously observed by a staff member in an unlocked setting from which the student is permitted to leave. Staff shall be with the student or immediately available to the student at all times.

A time-out shall cease as soon as the student has calmed. Staff supervising the student should support co-regulation and closely monitor the student’s physical cues, tone of voice, and demeanor to determine whether the student has calmed. Students should not be required to

complete a specific task to demonstrate that they have calmed if their physical body, tone, and demeanor demonstrate regulation.

Any room or area that is used for time-out must be of appropriate size for the age and the needs of the student; appropriately lighted, ventilated, and heated or cooled, consistent with the remainder of the building; free of objects or fixtures that are inherently dangerous to the student; in compliance with any applicable local fire and building code requirements;

"Medication restraint" shall mean the administration of medication for the purpose of temporarily controlling behavior. The use of medication restraint is prohibited unless explicitly authorized by a physician and consented to by the parents/guardians/caregivers of the student.

"Prone restraint" shall mean a restraint in which a student is placed face down on the floor or another surface, and physical pressure is applied to the student's body to keep the student in the prone position. The use of prone restraint is expressly prohibited.

"Principal/Head of School" shall mean the instructional leader of a public education school program or designee.

B. Use of Restraint

Any physical restraint shall be limited to the use of such reasonable force as is necessary, for the least time necessary, to protect a student or another member of the school community from assault or imminent, serious, physical harm. A physical restraint may only be administered by school personnel who have been properly trained in the use of physical restraint.

C. Other Limitations on Use of Restraint

The following practices are expressly prohibited: (i) use of restraint inconsistent with the provisions set forth Section II (B) above (ii) use of physical restraint as a means of discipline or punishment, as a response to the destruction of property or disruption of school order, as a response to a student's refusal to comply with a school rule or staff directive, or as a response to verbal threats when those actions do not constitute a threat of imminent, serious, physical harm; (iii) use of prone restraint; (iv) use of mechanical restraint; (v) use of medication restraint that has not been approved by a physician or consented to by the student's parents/guardians/caregivers; (vi) use of restraint when a student cannot be safely restrained; and (vii) continued use of restraint when students indicate that they cannot breathe, or appear to be in severe distress (including but not limited to: difficulty breathing, sustained or prolonged crying and coughing).

D. Proper Administration of a Physical Restraint

Only trained school personnel shall administer physical restraints. Trained school personnel are those individuals who have received either the in-depth training detailed below, or who have received the required basic training detailed below.

The administration of the physical restraint shall be witnessed by at least one adult, as quickly as practicable, who does not participate in the physical restraint. When administering a physical restraint, school personnel shall use only the amount of force necessary to protect the student or others from physical injury. Program staff shall review and consider any known medical or psychological limitations, known or suspected trauma history, and/or behavioral intervention plans regarding the use of physical restraint on an individual student.

During the administration of a restraint, school personnel shall monitor the physical status of the student, including skin color, temperature and respiration. Any and all restraint shall be immediately released upon a determination by the school personnel administering the restraint that the student is no longer at risk of causing imminent physical harm to themselves or others. Additionally, restraints shall be administered in such a way as to prevent or minimize physical harm.

At any time during and after the administration of a physical restraint, school personnel shall seek to contact the Office of Student Services board-certified behavioral analysts, or the Crisis Intervention Team, or take other steps to seek medical and/or social emotional assistance if it appears that the student is demonstrating or articulating physical and/or mental distress. This may include contacting counselors.

Recognizing that the administration of a physical restraint can impact more than the student against whom the restraint is administered, school personnel shall offer social-emotional supports to any students and/or staff who witness the administration of a physical restraint. This may include contacting the Office of Student Services, board-certified behavioral analysts and counselors.

E. Reporting Requirements

At an appropriate time after a student has been released from a restraint, the restraining staff member shall:

- a. review the restraint with the restrained student and relevant staff to address the behavior that precipitated the restraint;
- b. review the incident with a supervisor to discuss whether proper restraint procedures were followed;
- c. notify the Office of Student Services and principal/head of school as soon as practicable and no later than within 24 hours;
- d. notify the parents/caregivers/guardians as soon as practicable. An initial notification must be made prior to the student leaving school or a school-sponsored activity. Initial reporting of a restraint to parents/caregivers/guardians shall be made verbally. If there is no response to verbal outreach, notification shall be made via electronic correspondence. A subsequent written report shall be generated within 5 business days and provided to parents/caregivers/guardians. The written record for parents/caregivers/guardians shall at minimum include a description of what precipitated the use of physical restraint, what transpired during the use of physical restraint, and what happened in the aftermath of the physical restraint.

F. Records Maintenance

- a. Every use of physical restraint shall be documented in writing, maintained electronically by the school and reported electronically to the Office of Student Services, the superintendent or designee, and the principal/head of school, including a basic description of what transpired, the name of the student restrained, the name of the staff member who restrained the student, the name(s) of any other staff member(s) who observed the restraint, and the name(s) of any other witnesses.
- b. The principal/head of school shall maintain ongoing records electronically on a school-based secure drive of all reported instances of physical restraint. In order to ensure equitable implementation of this policy, both the principal/head of school and the Office of Student Services shall keep records of all uses of restraint, including relevant demographic data on students involved in any action reported under this policy. These records will be maintained electronically on an Office of Student Services secure drive. This data shall be regularly reviewed by the Superintendent to provide constructive feedback on the policy and PSB practice, and a summary shall be made available to the School Committee at least once per year by the penultimate School Committee meeting in June.

III. District's Training Requirements

A. For All Program Staff

Staff shall receive annual training, within the first month of the school year or their employment, consisting of the following: (a) this policy and related procedures and guidelines developed by the Superintendent or designee; (b) interventions that may preclude the need for restraint, including de-escalation of problematic behaviors and other alternatives to restraint in emergency circumstances, including use of time-out as a behavior support strategy distinct from seclusion; (c) when behavior presents an emergency that requires physical restraint, the types of permitted physical restraints and related safety considerations, including information regarding the increased risk of injury to a student when any restraint is used, in particular a restraint of extended duration; (d) administering physical restraint in accordance with known medical or psychological limitations and/or behavioral intervention plans applicable to an individual student, including known or suspected trauma history; (e) the role of the student, staff and family in preventing use of restraint; and (f) identification of program staff who have received in-depth training pursuant to 603 C.M.R. 46.03(3) in the use of physical restraint. See 603 C.M.R. 46.03(2).

Adherence to these procedures ensures the safety of both students and educators. Staff are encouraged to act decisively in accordance with this policy during emergencies, and the District will provide the necessary training and post-incident support to ensure all interventions are handled safely and appropriately. Actions inconsistent with these procedures or the provided training will be addressed in accordance with District personnel policies

B. For Staff Authorized to Serve As A School-Wide Resource on the Proper Administration of Physical Restraints

At the beginning of each school year, the principal/head of school of each school shall identify program staff that is authorized to serve as a school-wide resource to assist in ensuring proper administration of physical restraint. The content of the in-depth training shall be thorough and competency-based. See 603 C.M.R. 46.03(3) and 46.03(4).

Second Reading

E 2 d. Administration of Medications in Schools and Delegation of Administration of Prescription Medications: (New Policy Voted 11/10/11, #11-72)

The purpose of this policy is to provide minimum standards for the safe and proper administration of medications to students in the Public Schools of Brookline (“PSB”), consistent with G.L. c. 94C, s. 7(g); G.L. c. 71, s. 54B, and 105 CMR 210.000, *et seq.*

I. MANAGEMENT AND APPLICATION OF THE MEDICATION ADMINISTRATION PROGRAM

This policy applies to the administration of all prescription medications, “over the counter” medications, investigational new drugs, and herbal, vitamin or holistic supplements or remedies (herein, collectively referred to as, “medications”) by PSB personnel to students during school or during school sponsored day or overnight field trips, and to the self-administration of such medications, drugs and supplements or remedies by PSB students during school or at such school sponsored events.

The PSB Coordinator of School Health Services shall serve as the Medication Program Manager, managing and supervising the medication administration program in the PSB. The school nurse shall manage and supervise the medication administration program in each school [210 CMR 210.003(A)(1)].

II. POLICY FOR THE ADMINISTRATION OF MEDICATION AT SCHOOL

Medications will be administered to students at school only when such administration is determined by the Coordinator of School Health Services, after consultation with the school physician, to be medically necessary to permit a student to access his or her educational program.

A. Responsibility for Policy and Procedure Development and Approval

The Coordinator of School Health Services, in consultation with the school physician, shall develop and propose, for approval by the School Committee, policies and procedures for the administration of medication and self-administration of medication within the PSB. These policies and procedures shall be consistent with the provisions of G.L. c. 94C, s. 7(g); G.L. c. 71, s. 54B, and 105 CMR 210.000, and shall be reviewed and revised as needed, but at least every two years [105 CMR 210.003(A)].

B. Documentation of the Administration of Prescription Medication

Each school where medications are administered by school personnel shall maintain a medication administration record for each student who receives medication during school hours. The medication administration record shall be maintained by the school nurse and shall include a

daily log and a medication administration plan, including the medication order and parent/guardian authorization. [105 CMR 210.009]

C. Response to Medication Emergencies

Consistent with 105 CMR 210.005(F)(4), the school nurse shall develop procedures for responding to medication emergencies, including any reaction or condition related to medication administration, which poses an immediate threat to the health or well-being of the student. Such procedures shall include maintaining a list of persons, with their telephone numbers, to be contacted as appropriate, including, but not limited to, the student's parent/guardian, school nurse, licensed prescriber and other persons designated in the student's medication administration plan. Such persons may include other school personnel, the school physician, clinic or emergency room staff, ambulance services and the local poison control center.

D. Storage of Prescription Medications

Consistent with 105 CMR 210.003(A)(4), the coordinator of School Health Services shall develop procedures for the proper storage of medications at school.

E. Reporting and Documentation of Medication Errors

Consistent with 105 CMR 210.005(F)(5), the school nurse shall develop procedures and forms for documenting and reporting medication errors.

F. Self-Administration of Medication

Consistent with 105 CMR 210.006, students may self-administer medications at school, provided the requirements of 105 CMR 210.006 are met. The Coordinator of School Health Services shall develop procedures for the self-administration of medications at school.

G. Dissemination of Information to Parents/Guardians

An outline of the school's medication policies shall be made available to parents/guardians upon request. [105 CMR 210.003(A)(6)] Such outline shall be posted on the PSB website and shall be available in accessible format in each school clinic.

H. Dispute Resolution

In accordance with standard nursing practice, the school nurse may refuse to administer or allow to be administered any medication, which, based on her/his individual assessment and professional judgment, has the potential to be harmful, dangerous or inappropriate. In these cases, the parent and licensed prescriber shall be notified immediately by the school nurse and the reason for refusal explained.

In the event of a dispute concerning the administration of a medication, the disputing party shall make a written request for review of the dispute to the Coordinator of School Health Services, who will investigate the matter and, following consultation with the school nurse and the school physician (as defined in 105 CMR 210.002), issue a decision. The decision of the Coordinator of School Health Services shall be final.

III. POLICY REGARDING THE DELEGATION OF PRESCRIPTION MEDICATION ADMINISTRATION

A. Delegation and Supervision

During such time as the PSB continues to be registered with the Department of Public Health pursuant to the applicable provisions of 105 CMR 700.000 and is otherwise in compliance with the requirements of 105 CMR 210.000, the school nurse may delegate the administration of non-parenteral medications to students during regular school activities, including but not limited to school sponsored day or overnight field trips. The administration of parenteral medications may not be delegated or administered by training with the exception of epinephrine or injectable glucagon in an FDA pre-approved, pre-dosed autoinjector administered in accordance with 105CMR210.100.

These unlicensed school personnel must meet the requirements of 105 CMR 210.004, be trained and tested for competency in accordance with 105 CMR 210.100 and 210.007, be supervised by the school nurse and be listed on the student's medication administration plan developed in accordance with 105 CMR 210.005 and 210.007.

The school nurse may rescind the delegation of specific personnel at any time [210.005(G)(1)].

Neither prescription medication nor over-the-counter medications can be administered by delegation by unlicensed school personnel without student-specific medications from a licensed prescriber.

A school nurse shall be on duty while medications are being administered by designated unlicensed school personnel, and available telephonic or virtually should consultation be required.

B. Training of School Personnel

School personnel who are responsible for administering medications at school shall be trained in accordance with 105 CMR 210.007. At a minimum, the training shall include content standards and a test of competency developed and approved by the Department of Public Health in consultation with the Board of Registration in Nursing and practicing school nurses.

An updated list of school personnel who have been trained in the administration of medications shall be maintained by each school nurse and shall be made available to parents/caregivers upon request.

The school nurse shall document training and evidence of competency of unlicensed personnel designated to assume responsibility for medication administration.

C. Decision-Making Authority

The school nurse, in consultation with the Coordinator of School Health Services and the school physician, shall have final decision-making authority with respect to delegating the administration of medications to PSB personnel in each school.

D. Responsibility and Compliance

All PSB health personnel are responsible for understanding their responsibility and obligations under this policy.

Refs: G.L. c. 94C, s. 7(g); 71, s. 54B; 105 CMR 210.000

DPH Registration Date:

Reviewed by School Physician:

Approved by Coordinator of School Health Services:

Approved by School Committee:

Second Reading

PROCEDURES FOR THE ADMINISTRATION AND SELF-ADMINISTRATION OF MEDICATIONS AT SCHOOL

The Coordinator of School Health Services, in consultation with the school physician, has developed and proposed, for approval by the School Committee, the following procedures for the administration of medications in the Public Schools of Brookline ("PSB"). These procedures are intended to be and shall be construed as consistent with the provisions of G.L. c. 94C, s. 7(g); G.L. c. 71, s. 54B, and 105 CMR 210.000, and shall be reviewed and revised as needed but at least every two years [105 CMR 210.003(A)].

A. Introduction

Medications will be administered to students only when such administration is determined to be medically necessary to permit a student to access his/her educational program. Daily medications shall be given at home whenever possible. In extenuating circumstances only, and with approval by the school nurse, a daily medication may be given at school.

B. Medication Orders

1. Prior to administering medication to a student, the school nurse shall ensure that there is a proper medication order from a licensed prescriber, which is renewed as necessary including the beginning of each academic year. A telephone order or an order for any change in medication shall be received only by the school nurse from the licensed prescriber. A verbal order must be followed up with a written order within three (3) school days. A faxed order must be sent directly from the licensed prescriber's office to the nurse. When possible, the medication order shall be obtained, and the medication administration plan shall be developed, before the student enters or re-enters school.

2. Medication orders from a licensed prescriber shall contain (a) the student's name; (b) the name and signature of the licensed prescriber and his/her business and emergency phone numbers; (c) the name, route and dosage of medication; (d) the frequency and time of medication administration; (e) the date of the order and discontinuation date; (f) a diagnosis and any other medical condition(s) requiring medication, if not a violation of confidentiality or if not contrary to the request of a parent, guardian or student to keep confidential; and (g) specific directions for administration and (h) potential side effects.

3. Every effort shall be made to obtain from the licensed prescriber the following additional information, if appropriate: (a) any other medications being taken by the student; (b) the date of the next scheduled visit, if applicable.

C. Special Medication Situations

1. For short-term medications, i.e., those requiring administration for ten school days or fewer, a pharmacy-labeled container may be used in lieu of a licensed prescriber's order; however, if the school nurse has a question, they may request a licensed prescriber's order.

2. For over-the-counter medications, i.e., nonprescription medications, the school nurse shall follow the Board of Registration in Nursing's Advisory Ruling 92-05: Medication

Administration of Over-the-Counter Drugs, which shall include, at a minimum, (a) a written order by a licensed prescriber; (b) written consent of the parent or caregiver and (c) a pharmacy-labeled container for dispensing.

3. For medications administered under a standing order, the school nurse shall follow the Board of Registration in Nursing's Advisory Ruling 9324: Verifying, Transcribing and Implementing Medication Orders.

4. Investigational New Drugs may be administered at school with (a) a written order by a licensed prescriber; (b) written consent of the parent or caregiver; and (c) a pharmacy-labeled container for dispensing. If the school nurse has a question, they may seek consultation and/or approval from the school physician to administer the drug in the school setting.

5. Herbal, vitamin, or holistic supplements and remedies will not be administered at school unless they are listed in the Physician's Desk Reference for Nutritional Supplements and the school nurse has received (a) a written order by a licensed prescriber stating that the administration at school of such supplement/remedy is medically necessary to permit the student to attend school or to access the curriculum; (b) written consent of the parent or guardian; and (c) a pharmacy-labeled or sealed manufacturer's labeled container for dispensing.

D. Parent/Caregiver Consent

Prior to administering medication to a student, the school nurse shall ensure that written authorization has been received from the parent/caregiver, which contains: (a) the parent or caregiver's printed name, signature and a home and emergency phone number; (b) a list of all medications the student is currently receiving, if not a violation of confidentiality or contrary to the request of the parent, caregiver or student that such medication not be documented; (c) approval to have the school nurse or school personnel designated by the school nurse administer the medication; (d) persons to be notified in case of a medication emergency, in addition to the parent or guardian and licensed prescriber.

E. Medication Administration Plan

1. The school nurse, in collaboration with the parent/caregiver whenever possible, shall establish a medication administration plan for each student receiving medication. Whenever possible, a student who understands the issues of medication administration shall be involved in the decision-making process and their preferences respected to the maximum extent possible.

2. Prior to initial administration of the medication, the school nurse shall assess the child's health status and develop a medication administration plan, which shall include: (a) the name of the student; (b) a medication order from a licensed prescriber that meets the requirements of Section C (1)(a); (c) signed authorization of the parent or caregiver that meets the requirements of Section C(2), including telephone number and emergency telephone numbers; (d) any known allergies to food or medications; (e) the diagnosis, unless a violation of confidentiality or the parent, caregiver or student requests that it not be documented; (f) any possible side effects, adverse reactions or contraindications; (g) the quantity of medication to be received by the school from the parent or guardian; (h) the required storage conditions; (i) the duration of the prescription; (j) the designation of unlicensed school personnel, if any, who will administer medication to a student in the absence of the nurse, and plans for back up if the

designated personnel are unavailable; (k) plans, if any, for teaching self-administration of the medication; (l) with parental permission, other persons, including teachers, to be notified of medication administration and possible adverse effects of the medication; (m) when appropriate, the location where the administration of the medication will take place; (n) a plan for monitoring the effects of the medication; and (o) the school nurse has final decision-making authority for the provision of medication administration in the case of field trips and other short-term special school events, which may include nursing staffing, delegation of medication administration or a combination of nursing staffing and delegation of medication administration.

The school nurse may delegate medication administration to other PSB personnel in accordance with PSB policy and 105 CMR 210. Written consent from the parent or guardian for the individual who will administer the medication shall be obtained.

F. Procedures for Administration of Medications at Schools

The Coordinator of School Health Services and each school nurse shall ensure that each school has the following procedures and systems in place that comply with the PSB Policy for the Administration of Medications at School and 105 CMR 210.000, et seq.:

1. Procedures to ensure the positive identification of students receiving medications at school;
2. A system for appropriate documentation and record keeping;
3. A system for documenting observations by the nurse or school personnel and communicating significant observations relating to medication effectiveness and adverse reactions or other harmful effects to the child's parent/guardian and/or licensed prescriber;
4. Procedures for the receipt and safe storage of prescription medications;
5. Access to a current pharmaceutical reference by the school nurse, such as the Physician's Desk Reference (PDR);
6. Procedures for responding to medication emergencies in compliance with 105 CMR 210.005(F)(4); and
7. Procedures for documenting and reporting medication errors in compliance with 105 CMR 210.005(F)(5). The procedures shall specify persons to be notified in addition to the parent/guardian and nurse, including the licensed prescriber or school physician if there is a question of potential harm to the student. A medication error includes any failure to administer medication as prescribed for a particular student, including failure to administer the medication (a) within appropriate time frames; (b) in the correct dosage; (c) in accordance with accepted practice; or (d) to the correct student. The school nurse shall review reports of medication errors and take necessary steps to ensure appropriate medication administration in the future.
8. Responsibilities and Procedures for supervision of unlicensed school personnel:

Any unlicensed school personnel administering medication must be properly trained and supervised by a school nurse. Training shall be provided under the direction of the school nurse and the Coordinator of School Health Services.

At a minimum the training program shall include content standards and a test of competency developed and approved by the Department of Public Health in consultation with the Board of Registration in Nursing and practicing school nurses

The school nurse shall document the training and evidence of competency of unlicensed personnel designated for medication administration

The first time that an unlicensed school personnel administers medication, the delegating school nurse shall provide supervision at the work site. In extenuating circumstances, as determined by the school nurse, the skills competency for p.r.n. emergency rescue medications administered through inhalation or through the mucous membranes of the nose, digestive tract, or lungs (such as inhalers and nasal preparations of glucagon and diazepam) or, in the case of injectable glucagon, an FDA-approved, pre-dosed autoinjector, may be demonstrated without administration of the medication to the student. When a p.r.n. emergency rescue medication is administered, the medication plan shall address notification of the local emergency medical services system, followed by notification of the student's caregiver. (5) The degree of supervision required for each student shall be determined by the school nurse

The school nurse shall provide a training review and informational update at least annually for those unlicensed school personnel authorized to administer medication

G. Procedures for Self-Administration of Medications at Schools

Self-administration of a medication means that a student is able to consume or apply a medication in the manner directed by the licensed prescriber, without additional assistance or direction. A school nurse may permit self-administration of a medication by a student provided the following requirements are met:

(1) the student, school nurse, and parent/caregiver, where appropriate, enter into an agreement which specifies the conditions under which medication may be self-administered, which may include the conditions under which a student may self-carry medication or whether the medication being self-administered is being taken or applied by the student themselves or with an FDA approved medical device; and the school nurse, as appropriate, develops a medication administration plan, which contains only those elements necessary to ensure safe self-administration of medication;

(2) the student's health status and abilities have been evaluated by the school nurse, the school nurse is reasonably assured that the student is able to identify the appropriate medication, knows the frequency and time of day for which the medication is ordered, as necessary, the school nurse observes initial self-administration of the medication, and the nurse deems self-administration safe and appropriate

(3) there is written authorization from the student's parent/caregiver that the student may self-medicate, unless the student has consented to treatment under M.G.L. c. 112, s. 12F or other authority permitting the student to consent to medical treatment without parental permission;

(4) if requested by the school nurse, the licensed prescriber provides a written order for self-administration;

(5) the student follows a procedure for documentation of self-administration of medication;

(6) the school nurse establishes a policy for the safe storage of self-administered medication and, as necessary, consults with teachers, the student and parent/caregiver, if appropriate, to determine a safe place for storing the medication for the individual student, while providing for accessibility if the student's health needs require it. This information shall be included in the medication administration plan. In the case of an inhaler or other preventive or emergency medication, such policy shall include, whenever possible, provision of a backup supply of the medication which shall be kept in the school clinic or other, readily available location;

(7) consistent with 105 CMR 210.006(B)(9), the school nurse develops and implements a plan to monitor the student's self-administration, based on the student's abilities and health status; and

(8) with parent/caregiver and student permission, as appropriate, the school nurse informs appropriate teachers and administrators that the student is self-administering a medication.

H. Documentation and Record-Keeping

Each school shall maintain a medication administration record for each student who receives medication at school. Such records shall include a daily log and a medication administration plan, including the medication order and parent/caregiver authorization. The medication administration plan shall include the information as described in 105 CMR 210.005(E).

The daily log shall contain: (a) the dose or amount of medication administered; (b) the date and time of administration or omission or administration, including the reason for omission; and (c) a mechanism for identifying the person administering each dose.

The school nurse shall document in the medication administration record significant observations of the medication's effectiveness, as appropriate, and any adverse reactions or other harmful effects, as well as any action taken.

All documentation shall be recorded in a manner that prevents alteration or destruction of the record.

With the consent of the parent, caregiver, or student where appropriate, the completed medication administration record and records related to self-administration of medication shall be filed in the student's cumulative health record. When the parent/caregiver or student, where appropriate, objects, these records shall be regarded as confidential medical information and shall be kept confidential to the extent permitted by law, except as provided in 105 CMR 210.000

Medication Errors, as defined in 105 CMR 210.005 shall be documented by the school nurse using the PSB accident report form and noted in the student's health record. The school nurse will comply with the Department of Public Health's reporting requirements for medication administration in the schools.

I. Response to Medication Emergencies

The response to medication emergencies shall be consistent with the PSB's policy for handling all health emergencies and shall include, at a minimum, maintaining a list of persons, in addition to the parent/guardian, school nurse, licensed prescriber and other persons designated in the medication administration plan, to be contacted as appropriate, with their telephone numbers. Such persons may include other school personnel, the school physician, clinic or emergency room staff, ambulance staff and the local poison control center.

J. Administration of Epinephrine to Individuals Experiencing Life-Threatening Allergic Reactions

During such time as the PSB is registered with the Department of Public Health for such purpose and appropriate approval of the School Committee has been provided pursuant to 105 CMR 210.100, the school nurse may train unlicensed PSB personnel to administer any available, FDA-approved pre-dosed form of epinephrine to students in life threatening situations during regular school activities when a nurse is not immediately available, including during field trips. In consultation with the school physician, the medication program manager oversees and has final decision-making authority about the epinephrine program, in accordance with 105 CMR 210.100.

The school nurse shall select the individuals authorized to administer epinephrine by auto injector. Persons authorized to administer epinephrine shall meet the requirements of 105 CMR 210.004(B)(2).

The school personnel authorized to administer epinephrine by any available, FDA-approved pre-dosed form of epinephrine shall be trained and tested for competency by the Coordinator of School Health Services or the school nurse in accordance with standards and curriculum established by the Department of Public Health. The Coordinator of School Health Services or school nurse shall document the training and testing of competency of school personnel authorized to administer epinephrine. A training review and informational update shall be provided twice a year by the school nurse or the Coordinator of School Health Services, school nurse, or a designee.

The training shall include, at a minimum: (a) procedures for risk reduction; (b) recognition of the symptoms of a severe allergic reaction; (c) the importance of following the medication administration plan; (d) proper use of the administration device auto-injector; (e) requirements for proper storage and security; (f) notification of appropriate persons following administration; and (g) record keeping.

The school shall maintain and make available, upon request by parents or staff, a list of those unlicensed school personnel authorized and trained to administer epinephrine by auto injector in an emergency when the school nurse is not immediately available.

Epinephrine shall be administered only in accordance with an individualized medication administration plan satisfying the applicable requirements of 105 CMR 210.005(E) and 210.009(A)(6), which shall be updated annually, and which shall include: (a) diagnosis by a licensed prescriber that the child is at risk of a life threatening allergic reaction and a medication order containing proper dosage and indications for administration of epinephrine; (b) written authorization by a parent or caregiver; (c) phone number for the parent(s) or caregivers(s), as well as the names(s) and phone number(s) of any other person(s) to be notified if the parent(s) or guardian(s) are unavailable; (d) identification of places where the epinephrine is to be stored, following consideration of (i) the need for storage at one or more places where the student may be most at risk and in such a manner as to allow rapid access by authorized persons including possession by the student when appropriate; and (ii) in a place accessible only to authorized persons that is secure but not locked during those times when epinephrine is most likely to be administered, as determined by the school nurse; (e) a plan for comprehensive risk reduction for the student, including preventing exposure to specific allergens; and (f) an assessment of the student's readiness for self-administration and training, as appropriate.

When epinephrine is administered, there shall be immediate notification of the local emergency medical services system (E-911), followed by notification of the student's parent(s)/caregiver/guardian(s) or, if the parent(s)/caregiver/guardian(s) are not available, another designated person(s). If the epinephrine is administered by unlicensed school personnel, the school nurse, and other individuals as warranted and deemed appropriate by the school nurse must also be notified, the school nurse, the student's physician, and the school physician, to the extent possible. Because of the danger of biphasic reactions, the student should be transported by trained emergency medical personnel to the nearest emergency medical facility.

Following the administration of epinephrine to a student, the school nurse shall review the incident with the Coordinator of School Health services and the school physician, if appropriate, to determine the adequacy of the response and to consider ways of reducing future risks for the particular student and the student body in general;

The school nurse shall also develop procedures for (a) the proper disposal of used epinephrine injectors; (b) submitting a written report to the Department of Public Health each time epinephrine is administered on a form obtained from the Department; and (c) permitting access to the Department of Public Health to records related to the administration of epinephrine in compliance with 105 CMR 210.100.

K. Proper Storage of Medications

(1) A parent/caregiver/guardian or parent/caregiver/guardian-designated responsible adult shall deliver all medications to be administered by school personnel or to be taken by self-medicating students (if required by the self-administration agreement) to the school nurse or other responsible person designated by the school nurse.

(2) The medication must be delivered and stored in their original pharmacy or manufacturer labeled container specific to that medication in such a manner as to render them safe and effective.

(3) The school nurse or other responsible person receiving the medication shall document the quantity of the medication that is delivered. No more than a 30-day supply of medication for

a student shall be stored at school, with the exception of multidose devices, which may contain more than a 30-day supply.

(4) In extenuating circumstances, as determined by the school nurse, the medication may be delivered by other persons, provided that the nurse is notified in advance by the parent or caregiver of the arrangement and of the quantity of medication being delivered to the school.

(5) With the exception of emergency medications, which shall be kept in a secure but unlocked cabinet during the school day, all prescription medications to be administered by school personnel shall be kept in a securely locked cabinet used exclusively for medications, which is kept locked except when opened to obtain medications. The cabinet shall be substantially constructed and anchored securely to a solid surface. Medications requiring refrigeration shall be stored in either a locked box in a refrigerator or in a locked refrigerator maintained at temperatures of 38 to 42 degrees Fahrenheit.

(6) Access to stored medications shall be limited to persons authorized to administer medications and to self-medicating students. Access to keys and knowledge of the location of keys shall be restricted to the maximum extent possible. Students who are self-medicating shall not have access to other students' medications.

(7) Parents or guardians may retrieve medications from the school at any time by making arrangements to do so with the school nurse.

(8) Where possible, all unused, discontinued or outdated medications shall be returned to the parent/guardian and the return shall be appropriately documented. Medications may be destroyed in accordance with any applicable policies of the DPH by the school nurse if they are not picked up by the parent/guardian within ten school days of the termination of the medication order, the medication's expiration date, or transfer of the child to another district.

Refs: G.L. c. 94C, s. 7(g); 71, s. 54B; 105 CMR 210.000

Reviewed by School Physician:

Approved by Coordinator of School Health Services:

Approved by School Committee: 11/10/11

E 2 d.1 Naloxone (also known as Narcan) Use in the Public Schools of Brookline

Purpose

(New Policy Voted 12/1/16, #16-17)

To recognize and respond to a potential life-threatening opioid overdose, the Public Schools of Brookline shall maintain a system-wide plan for addressing potential life-threatening opioid overdose reactions. The Coordinator of School Health Services shall be responsible for the development and implementation of the Naloxone administration program in the school setting in accordance with Massachusetts Department of Public Health (MDPH) regulations and published directives. The school physician shall provide oversight to monitor the program and ensure quality improvement and quality control. The system-wide plan shall include, at a minimum, consistent with the law, the following:

1. Stocking of Naloxone. The Public Schools of Brookline is authorized to stock Nasal Naloxone for purposes consistent with this policy.
2. Standing orders for Naloxone. The standing order for Nasal Naloxone issued by the school physician authorizes the school nurse to administer nasal Naloxone in the setting of a suspected opioid overdose.
3. Training of nursing staff. All nursing staff and other staff as determined by the Superintendent, shall be trained and authorized as required by MDPH regulations and directives.
4. Integration of opioid overdose-related emergencies into Building based general Medical Emergency Response Plans.
5. Coordination of emergency-related opioid overdose with local emergency response services.
6. On an annual basis, the Coordinator of Student Health Services shall provide a report on the usage of Naloxone to the Superintendent.

Refs: MA General Laws, Chapter 71, Section 96

***I 7 Middle School Career Technical Education (CTE) Pathway Exploration Policy
(new policy)***

General Statement of Policy

Massachusetts regulations (603 CMR 4.00) require all sending districts to maintain a Middle School Pathway Exploration Policy that ensures students are aware of, and have opportunities to explore, career technical education (CTE) pathways available to them in district, regional, and agricultural high schools. The Public Schools of Brookline has a relationship with Norfolk County Agricultural High School.

The Public Schools of Brookline (PSB) is committed to ensuring that all middle school students have equitable access to exploration of high school options, including CTE programs, and that this exploration is integrated into each student's academic and career planning.

This policy details how PSB will:

1. Collaborate with Norfolk County Agricultural High School to provide informational opportunities to PSB middle school students.
2. Ensure all students have the opportunity to tour Norfolk County Agricultural High School or other approved CTE schools during school hours.
3. Maintain a systematic process for providing records and documentation to Norfolk County Agricultural High School or approved CTE schools during admissions.
4. Maintain documentation of policy implementation.

I. District Goals for Career Exploration

The Public Schools of Brookline strives to:

- Ensure that every middle school student gains awareness of multiple career pathways, including CTE, college preparatory, and other secondary school options.
- Provide equitable, bias-free exposure to CTE programs for all students, including students with disabilities, English Learners, and students experiencing homelessness.
- Reduce barriers to accessing CTE information by providing multiple modalities of communication (in-person, online, virtual sessions, print materials).

During middle school, students explore career options, high school options (including courses and programs available to them), and post-secondary pathways. PSB provides exploration activities in grades 6 to 8 to support students in identifying their interests, strengths, and goals.

Students who are interested in CTE programs will be provided the opportunity to participate in the DESE CTE Awareness Module.

II. Communication of CTE Opportunities

By October 15 of each school year, PSB will:

- Offer Norfolk County Agricultural High School the opportunity to provide on-site information sessions at each PSB school.
- Share information about Norfolk County Agricultural High School with families via mail, email, and digital communications.
- Maintain a public-facing webpage that lists admissions timelines, information sessions, and contact information for Norfolk County Agricultural High School

III. Collaboration with Norfolk County Agricultural High School

PSB will collaborate with Norfolk County Agricultural High School by:

- Coordinating annual information sessions to occur at PSB schools.
- Participating in annual planning meetings with Norfolk County Agricultural High School to align schedules for tours and recruiting events.

IV. Middle School CTE Tour Policies

PSB will ensure that all students in grades 6 to 8, at least once, are offered an opportunity to tour Norfolk County Agricultural High School or another participating CTE program during regular school hours.

Per regulation:

- Transportation costs for the tours will be covered by the hosting CTE school.
- PSB will coordinate with Norfolk County Agricultural High School to schedule group tours for middle school students.
- Students participating in approved CTE tours will not receive an unexcused absence. Absences will be coded as excused upon confirmation of participation from the CTE school.

V. Providing Records to CTE Schools During Admissions

Upon receiving a request from Norfolk County Agricultural High School or another CTE school for admissions purposes, PSB will provide allowable student information consistent with CTE regulations and privacy requirements.

This includes:

- Attendance records (limited to 7th grade and above, and only unexcused absences)
- Applicable disciplinary information aligned with 603 CMR 4.00
- Confirmation of student participation in tours or information sessions, when relevant

PSB will **not** share prohibited documents during the admissions process (e.g., IEPs, health records, home language surveys, immigration status).

In accordance with 603 CMR 4.03(6), PSB will also provide the names and addresses of all 7th and 8th-grade students to Norfolk County Agricultural High School no later than October 15 of each school year, unless a parent or guardian has opted out of directory information release under FERPA.

VI. Maintenance of Documentation

PSB will maintain records documenting:

- Student participation in CTE tours
- Dates and evidence of communications sent to students and families (mail, email, website)
- Contact information shared with CTE schools per regulation
- Annual implementation required for DESE attestation

VII. Policy Review and Publication

This policy will be:

- Reviewed annually and updated as needed
- Posted on the Public Schools of Brookline website
- Provided to families upon request

I 2. Curriculum and Instructional Materials

[Replacing the current Section I 2]

First reading at School Committee, 26 March 2026

I 2 a. Curriculum Development and Adoption

Constant adaptation and development of the curriculum is necessary if the District is to meet the needs of its students. The School Committee will rely on the professional staff to design and implement instructional programs and courses of study that reflect PSB's educational goals and priorities.

The Superintendent will have authority to recommend new programs and courses of study after they have been studied thoroughly and found to support these educational goals. The Committee will consider, and officially adopt, new programs and courses when they constitute an extensive alteration in instructional content or approach.

The Committee will be informed of all new courses and substantive revisions in curriculum, and will receive reports on changes under consideration. The Committee's acceptance of these reports, including a listing of the high school program of studies, will constitute its adoption of the curriculum for official purposes.

The Superintendent will develop procedures governing curriculum development and adoption, including guidelines for community participation.

I 2 b. Selection of Instructional Materials

The task of selecting instructional materials for programs is delegated to the District's professional staff. The Superintendent should ensure that the materials selected meet the following criteria whenever applicable:

- They must provide for all students an effective education that does not discriminate on the basis of race, color, age, physical or mental disability, pregnancy, homelessness, sex/gender, gender identity/expression, religion, national origin, ancestry, sexual orientation, genetics, or natural or protective hairstyle.

- They must provide sufficient flexibility to meet the diverse needs of individual students and groups of students.
- They should help students develop abilities in critical reading and thinking, and promote reasoning, analysis, and problem-solving.
- They should stimulate growth in factual knowledge, literary appreciation, and aesthetic and ethical values.
- They should foster an appreciation of cultural diversity and development in the United States and throughout the world.
- They should present multifaceted treatments of international, national, and local issues, so that students have an opportunity to develop, under guidance, skills in critical analysis and in making informed judgments.

The Superintendent will develop procedures governing the selection of instructional materials, as well as procedures for handling inquiries and requests from the community regarding instructional materials.

Memorandum

To: School Committee

From: Alexandra Vecchio, DPW Sustainability & Natural Resources Division Director
Miranda Hotham, Zero Waste Program Manager

Date: March 26, 2026

Re: Updates to the Town of Brookline's Environmentally Preferable Purchasing Policy

CC: Erin Chute, DPW Commissioner
Kevin Johnson, Deputy Commissioner of DPW Operations & Highway and Sanitation Director
Richard Saville, Chief Procurement Officer

The Town of Brookline's Department of Public Works (DPW) Sustainability & Natural Resources Division respectfully requests that the School Committee vote to support updates to the Town's Environmentally Preferable Purchasing Policy (EPPP). Based on the recommendation of the Policy Subcommittee, the School Committee will not adopt the policy as part of the PSB Policy Manual, but rather support it being added to the Town's Policy Manual. This revised policy aligns with the existing PSB Sustainability Policy. Adoption of these updates is necessary to maintain eligibility for the Massachusetts Department of Environmental Protection (MassDEP)'s Sustainable Material Recovery Program (SMRP). The Town relies on SMRP funding each year to support waste reduction, reuse, recycling, and composting programs, including initiatives within the Public Schools of Brookline. Continued eligibility for this funding is contingent upon compliance with updated MassDEP policy requirements.

Background

Environmentally Preferable Purchasing refers to the procurement of goods and services that reduce environmental and public health impacts. The Town's first iteration of an EPPP came in 1971, when the Selectmen approved the Recycled Paper Policy, which was reaffirmed in 1995. In 2008, a policy regarding the purchase and use of Environmentally Friendly ("Green Seal certified") Cleaning Products for all Town and School buildings was voted and approved by Town Meeting under the resolution presented in Article 12. These policies reflect Brookline's efforts to integrate sustainability into municipal and school operations.

SMRP Funding and Impact

Brookline receives approximately \$30,000 – \$45,000 annually through MassDEP's annual SMRP Recycling Dividend Program (RDP). This funding directly supports the Town's zero waste programs, including school composting and other waste diversion initiatives.

Beginning **June 1, 2026**, MassDEP will implement updated eligibility requirements for SMRP participation. These changes directly affect the Town's ability to secure funding that supports both municipal and school sustainability efforts.

Required Policy Updates

In order to remain eligible to apply for an SMRP grant, municipalities will be required to have an EPPP that includes the 3 following elements:



BROOKLINE

DEPARTMENT OF PUBLIC WORKS

Erin Chute,
Town Hall, 4th Floor
333 Washington St.
Brookline, MA 02245
617-730-2156

- Commitment to purchasing products and services offered through the Operational Services Division (OSD)'s Environmentally Preferable Products and Services Program, whenever feasible;
- Adherence to Federal Comprehensive Procurement Guidelines, or other established criteria, for minimum accepted recycled content levels when purchasing office supplies; and
- Preference to, whenever possible, purchase goods and equipment through reuse and surplus property networks. When purchasing new, look for durable, reusable, and refillable items. When goods and equipment are no longer needed, prioritize using reuse and surplus property networks before disposal.

In addition to these required updates, the revised EPPP:

- Prioritizes the purchase of non-toxic products free of fluorinated chemicals (e.g., PFAS), consistent with Warrant Article 17 (2023); and
- Strengthens the role of the Chief Procurement Officer, in alignment with MassDEP recommendations.

The accompanying document shows the current EPPP in black text, with proposed revisions in red. Highlighted sections indicate the elements required to meet MassDEP's minimum eligibility criteria.

Review Process

The proposed revisions have been reviewed by Town Departments and shared with school staff. The Brookline Solid Waste Advisory Committee (SWAC) has also reviewed the draft policy and will be making a recommendation to the Select Board.

To ensure continued eligibility for SMRP funding, the Town must adopt these updates by May 2026.

Recommendation

The DPW Sustainability & Natural Resources division respectfully recommends that the School Committee vote to support the proposed updates to the Town's Environmentally Preferable Purchasing Policy.

Town Of Brookline Environmentally Preferable Product (EPP) Procurement Policy

In recognition of the need to make more efficient use of our natural resources, create markets for the materials collected in recycling programs, reduce solid waste volume and disposal costs, conserve energy and resources, and significantly limit the amount of toxic substances being disposed of or consumed while serving as a model for private and public institutions, the Town of Brookline is committed to purchasing products which are environmentally preferable whenever such products meet quality and performance requirements and are available at reasonable prices and terms. EPPs include, but are not limited to, products that contain recycled content, are energy efficient and less toxic, reduce packaging, conserve water, and are readily biodegradable. ~~and preserve open space.~~

To the maximum extent practicable, the following standards should be adhered to:

- a. For all purchases of printing and writing paper for in-house use or custom printed materials by professional printers (including copier paper, offset paper, forms, stationery, envelopes, tablets, notepads and file folders) the minimum content standards shall be no less than 30% post-consumer recycled materials to meet the current state and federal minimum standards.
 - b. All Town and School departments shall ensure that all contracts for printing require the inclusion of an imprint identifying the recycled content of the paper whenever practicable, along with the recycling symbol.
 - c. All Town and School departments shall commit to purchasing products and services offered through the Massachusetts Operational Services Division (OSD)'s Environmentally Preferable Products and Services Program as the primary source for goods and services, whenever such products meet operational needs and are available at reasonable cost.
 - d. All Town and School departments are expected to prioritize the purchase and use of products that are non-toxic and free of fluorinated chemical ingredients whenever feasible, and to encourage suppliers to develop organofluorine-free products where readily available substitutes do not yet exist. To support timely implementation, the Massachusetts Department of Environmental Protection (MassDEP) has developed a PFAS Free Buying Guide, which the Town may use for guidance identifying preferred products for government purchasing that exclude per- and polyfluoroalkyl substances (PFAS).
1. The Town's Chief Procurement Officer shall be responsible for providing guidance on implementation of this policy, approving allowable exceptions, and supporting consistent application across all Town and School departments. Any deviation from the

standards ~~set forth in this policy above~~ must be approved by the Chief Procurement Officer. The decision not to procure ~~recycled content printing and writing paper an EPP~~ meeting these standards shall be based solely on a determination that a satisfactory level of competition does not exist, that items are not available under a reasonable time period, or that items fail to meet reasonable performance standards or are only available at an unreasonable price.

2. ~~Each department shall annually report purchases of recycled content and EPP, in a format determined by the Chief Procurement Officer, to support program evaluation and state reporting needs. For the purpose of measuring the progress of the program and success in meeting the recycling goals of the Town and State, each department shall report purchases of recycled products to the Chief Procurement Officer by September 30 for the previous fiscal year.~~
3. Departments should consider targeting additional items to be purchased only with environmentally preferable content. Departments may refer to the Federal Comprehensive Procurement Guidelines, for minimal accepted recycled content levels when purchasing office supplies such as office paper, printed materials, office supplies, packaging, storage boxes, construction materials, transportation products (including signs, cones, parking stops, delineators, and barricades), janitorial paper products, paint, remanufactured toner cartridges, office (cubicle) panels, carpeting and flooring, trash bags, energy efficient office equipment, re-refined oil and anti-freeze.
4. Each department shall implement paper reduction techniques through the use of duplexing, sharing and circulating materials, use of electronic mail, and reuse of discarded paper for draft work, scrap paper and internal messages.
5. Prior to purchasing new products, all Town and School departments shall first evaluate opportunities for reuse, internal transfer, surplus redistribution, or donation, consistent with applicable procurement requirements. All departments shall practice a commitment to reducing waste by prioritizing reuse and donation of goods and equipment and purchasing products that are non-toxic, durable, reusable and refillable.
6. This acknowledges and includes the existing policies:

Recycled Paper Policy, approved by the Selectmen in 1971 and again on February 28, 1995

Policy regarding the purchase and use of Environmentally Friendly ("Green Seal certified") Cleaning Products for all Town and School buildings, which was voted and approved by Town Meeting on November 19, 2008, under the resolution presented in Article 12.

Memorandum

To: School Committee
Dr. Bella Wong, Superintendent of Schools

From: Charles A. Simmons, Director of Public Buildings *CAS*

Date: December 23, 2025

Re: School Repair and Maintenance Funding FY 2027 – FINAL

I am requesting an increase for services (R&M) and for personnel costs for FY27.

In order to fully fund the Repair and Maintenance Budget for FY 2027 and properly test, maintain and make repairs to School Buildings, I am requesting \$3,943,395^{*1} for outside service contractors. This is an increase of \$332,310 over the FY26 appropriation (\$3,538,863) for services. I am requesting that the budget increase by 4.5% to account for inflation.

The larger increase for R&M funding than has occurred in the past is primarily due to last year's increased funding request not being approved by the School Committee. I requested \$3,773,584 for FY26 which would have been a 4.5% increase over FY25.^{**2} The School Committee not only voted not to increase the R&M budget but to cut the budget for FY26 to \$3,538,863.

For Personnel, I am requesting to hire two (2) non-licensed HVAC Tradespersons to work in the Schools who would do limited HVAC work such as changing belts, air filters, greasing fittings on bearings, changing motors and pulleys, checking and repairing temperature controllers and other related work. The HVAC techs would replace the use of outside contractors. The net savings would be \$75K – 85K per year. The Town hired a non-licensed HVAC Tradesperson last fiscal year and it has been very successful versus using outside contractors:

¹ *For Repair and Maintenance, inflation for construction and maintenance right now has been above 5% and I am using an average 4.5% for increases; last years was 6%.

² **\$3,611,085 with a 2.5% increase of \$90,277 for a total of \$3,701,362. The R&M budget was reduced \$162,499. \$3,701,362 with \$162,499 removed for a total of \$3,538,863. That amount is slightly larger than FY24.

The justification for staff increase is also due to the following factors:

- Better service;
- Easier to plan and coordinate with on-site staff;
- Flexibility to change schedules with short notice;
- More responsive, timely results.

The R&M budget is prioritized based on the services. The highest priority is life safety (ex.: fire alarm, sprinklers, exit signs and emergency lights). The priority list then – Elevators, HVAC, Security, Electrical, Plumbing, Glazing, Roofing, Carpentry, Flooring, Painting, Windows (repairs, shades, cleaning).

If full funding is not provided, the budget and the list of services that would be provided would be reduced in proportion to the monies allotted in the order of lowest priority first, then second lowest priority and so on. Instead of being proactive for the maintenance of the buildings, work would be reactive.

These requests will increase over the next several years as more (new) space is added for the schools – Pierce School in two years.

For FY26, I was required to cut painting, flooring, window treatments and cleaning of the windows in order to balance the budget.

It is extremely important that R&M services get funded. I implore you to consider the larger cost of not keeping the school buildings in good condition by not maintaining them.

Thank you for your consideration.

cc: Charles Carey, Town Administrator
Melissa Goff, Deputy Town Administrator
Charlie Young, Assistant Town Administrator for Finance
Daniel Bennett, Building Commissioner

FY2027 MINI CIP SCHOOLS, 3.26.26 School Committee Meeting

Location	Project Details			PUBLIC BLDGS	PUBLIC BLDGS PRIORITY	FY 2027 Funding	
Baker	1	Refurbish restrooms - painting, partitions, mirrors	\$15,000		3	\$0	
	2	Refinish Small & Large Gyms	\$27,500		3	\$0	
	3	Shade replacement, various rooms	\$30,000		3	\$0	
	4	Paint entrance foyer, classrooms 10 rooms (104, 227, 228, 229, 230, 231, 206, 208, Library)	\$35,000		3	\$0	
		SUBTOTAL		\$107,500			\$0
Hayes	1	Library Carpet Replacement	\$19,494		1	\$19,494	
	2	Auditorium Rejuvenation (Replace & upgrade 8 wall sconces, floor, seats if applicable)	\$75,000		1	\$75,000	
	3	Paint (Halls, Classrooms, Offices)- staff room, 199, 200, main office, front lobby, 2nd fl hallway	\$50,000		1	\$50,000	
	4	Bathroom Refresh	\$25,000		1	\$25,000	
	5	Replace Window Shades in Various Classrooms	\$15,000		1	\$15,000	
		SUBTOTAL		\$184,494			\$184,494
BHS	1	Paint 2/3 of the Interior at 115 Greenough - Hallways, Roberts-Dubbs auditorium, Rms 152, 280, 277	\$150,000		1	\$150,000	
	2	Classroom & Hallway Flooring (Est. 300,000 SF, Main Campus, Greenough St.)	\$200,000		1	\$200,000	
	3	Bathroom Refresh	\$450,000		1	\$450,000	
	4	Renovate Auto Space for Engineering Program (Room 14 in UAB)	\$24,066		1	\$24,066	
	5	Schluntz Foyer Upgrade/Reuse (floor, paint, ceiling tiles)	\$50,000		1	\$50,000	
	6	Replace Ceiling Tiles in Cafeteria	\$25,000		1	\$25,000	
	7	Rejuvenate and Paint interior spaces at UAB (High ceilings need of paint)	\$45,000		1	\$45,000	
	8	Replace/ cover Pavilion Flooring	\$105,000		1		
		SUBTOTAL		\$1,049,066			\$944,066
Lawrence	1	Refresh Boys Locker Room	\$55,000		1	\$55,000	
	2	Paint Walls in Corridors Near Cafeteria & RN Office	\$25,000		1	\$25,000	
	3	Girl's Locker Room Refresh and Update Related Bathrooms	\$25,000		1	\$25,000	
	4	Bathroom Refresh	\$50,000		1	\$50,000	
	5	Paint foyer	\$12,500		1	\$12,500	
	6	Cafeteria - Renovate	\$250,000		3		
	7	Minor Floor Repairs	\$3,000		1	\$3,000	
	8	Refinish Small & Large Gyms	\$19,100		1	\$19,100	
		SUBTOTAL		\$439,600			\$189,600
Lynch		Painting	\$250,000		1	\$250,000	
		Flooring	\$100,000		1	\$100,000	
		Bathroom Refresh	\$55,000		1	\$55,000	
		Upgrade classroom kitchenette	\$50,000		1	\$50,000	
		SUBTOTAL		\$455,000			\$455,000
		GRAND TOTALS	\$2,235,660	\$2,235,660		\$1,773,160	\$1,773,160

DEFERRED MAINTENANCE

This shall include flooring, painting, shades, ceilings, bathroom fixtures

NEW BUSINESS **ACTION ITEMS** WORKSHEET

DR. JESSE HEFTER, SCHOOL COMMITTEE

Item	Date	Topic	Owner	Status
6	3/26/26	PSB Expense Tracker App	Jesse	<i>Docket Request</i>
5	3/19/26	OSS Director Hiring	Bella	Open
4	3/19/26	OAF Director Hiring	Bella	In-Process
3	3/4/26	FY27 Category Holiday Schedule	Jesse	In-Process
2	3/4/26	PSB Monthly Attendance Report	Bella	Open
1	3/4/26	BHS Cell Phone Policy Update	Bella	Open